REQUEST FOR PROPOSAL

FOR A COMPREHENSIVE TIME AND ATTENDANCE SOLUTION

RFP Issue Date: **Friday, November 14, 2025**

RFP Submittal Deadline: **Wednesday, December 24, 2025**
5:00 p.m. PDT

Northern California Power Agency
651 Commerce Drive
Roseville, CA 95678
Attn: Sondra Ainsworth
Time and Attendance Solution Services Proposal

Documents available online at:
www.ncpa.com

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1. Introduction

1.1. Summary of the Request for Proposals (RFP)

The Northern California Power Agency (NCPA or Agency) is seeking proposals from qualified vendors to provide a comprehensive electronic Time and Attendance System Solution for the Agency's employees. Currently, the Agency utilizes an electronic time and attendance system that is not rule-based and requires manual input of various pay codes. Once summarized, that data is integrated with ADP Workforce Now as the third-party payroll processing service provider.

To enhance efficiency and accuracy, the Agency intends to implement a rule-based automated system that will calculate hours and leave, overtime, etc., and will include leave management that automatically feeds into the timesheets, and improves workforce scheduling and management for employees and supervisors. The solution must support integration with existing payroll and financial systems, include leave management and robust shift scheduling capabilities, meet stringent security requirements, and offer both mobile and desktop interfaces.

Relationship to Prior Request for Information (RFI)

Prior to developing this Request for Proposals (RFP), the Agency issued a Request for Information (RFI) to solicit market feedback regarding modern timekeeping, leave management, and workforce scheduling solutions. The RFI was issued solely for information-gathering and planning purposes. Feedback received through the RFI informed the development of the requirements, configurations, and project priorities reflected in this RFP.

Participation in the RFI is **not required** in order to submit a proposal under this RFP and will **not** be considered or evaluated during the proposal evaluation process. All proposals will be evaluated solely on the criteria identified in Section 8 of this RFP.

To be considered, the proposal must be received via email by **5:00 p.m. on December 24, 2025** to:

Sondra Ainsworth
Treasurer - Controller
Northern California Power Agency
sondra.ainsworth@ncpa.com

Proposals received after the above date and time will not be considered. The time stamped on Agency servers will be considered the receipt date and time. The Agency will send confirmation emails following receipt of each proposal. Proposers are responsible for confirming receipt prior to the deadline. The Agency is not responsible for delays or errors related to email deliveries. If an email confirmation is not received, alternative delivery instructions may be requested.

1.2. Agency Background

The Northern California Power Agency (NCPA) is a joint powers agency formed by member public entities under the laws of the State of California to provide cost effective wholesale power, energy-related services, and advocacy on behalf of public power consumers. The Agency's purposes are for purchasing, generating, transmitting, and selling electrical energy and for providing other related services to its members and customers as each may require. The Agency provides a portion of certain of its members' power needs and certain of its members also self-provide and/or purchase power and transmission from other public and private sources. NCPA and its 16 members operate and maintain a fleet of power plants among the cleanest in the nation and provide reliable and affordable electricity to over 700,000 Californians.

The Agency is governed by a Commission comprised of one representative from each member. The Commission is responsible for establishing policy for the affairs, property, and business of the Agency. Under the direction of the General Manager, the staff of the Agency is responsible for providing various administrative, operating, and planning services for the Agency. The Agency's collections for electric service are not subject to the regulatory jurisdiction of the California Public Utilities Commission (CPUC) or the Federal Energy Regulatory Commission (FERC). Rather, the Agency's collections are established annually in connection with its budget, which is approved by its governing Commission.

The Agency's approved fiscal year 2026 gross budget totals $1.018 billion with net costs of $565 million that will be collected from members and participants. That budget includes a staffing count of 180. There are 170 full-time positions with the balance of positions comprised of seasonal part-time interns. Further detailed general information about the Agency can be found on our website www.ncpa.com.

The NCPA workforce consists of 36% and 64% of union (represented) and non-union (unrepresented) staff, respectively. The represented staff are comprised of two unions; Local 1245 of the International Brotherhood of Electrical Workers and the Hydroelectric Employees Association. Overtime and other rules are in accordance with collectively bargained Memorandums of Understanding between NCPA and the two unions (Attachments X and Y). The 64% of staff who are unrepresented are comprised of both hourly and exempt employees. The Agency follows federal overtime rules for unrepresented staff. NCPA employees are primarily located at four California locations: 1) Hydroelectric Project in Murphys; 2) Geothermal Project in Lake County; 3) Lodi Energy Center in Lodi; and 4) NCPA Headquarters in Roseville.

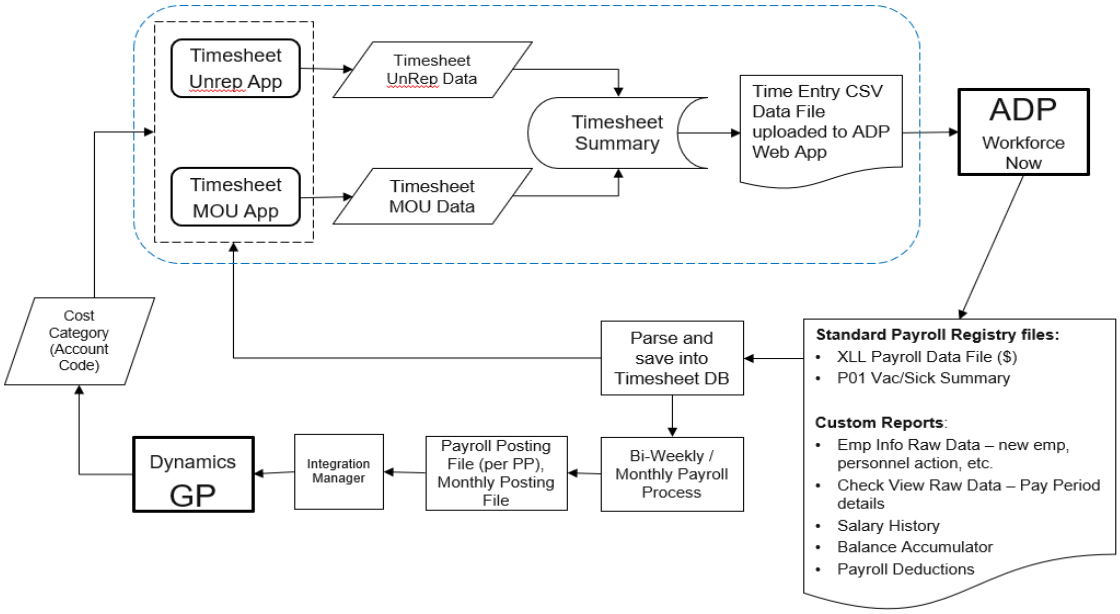
2. RFP Background and Project Overview

Currently, NCPA employees utilize a semi-automated time and attendance tracking system utilizing two versions of its in-house timekeeping system:

- Timesheet for non-union employees
- Timesheet Memorandum of Understanding (MOU) for union employees

Both versions are considered legacy systems on internal libraries that have reached their End-of-Life in terms of Microsoft Support and are due for replacement. NCPA has

conducted a review of options to replace its internally developed timekeeping system and has determined that engaging a best-in-class third-party vendor may represent a viable solution to meet organizational needs. The solution must be Cloud-based and must integrate with the ADP Workforce Now and Microsoft Dynamics Great Plains (GP) platforms, either directly or indirectly. NCPA utilizes ADP as the Agency's third-party payroll processing service provider and GP as its Enterprise Resource Planning (ERP) software. The following illustration reflects the flow of data between NCPA's timekeeping system, ADP, and GP. The goal of this project is to replace the sub-process located within the dashed blue lined rounded rectangle with the proposed automated solution:



While the in-house timekeeping system is electronic, employees are manually required to enter the various timecodes that are needed; the current system does not have the ability to automate timecodes based on default schedules and other rules. For example, if an MOU employee works a 60-hour week with 40 regular hours, 10 overtime hours paid at 1.5X, and 10 hours overtime paid at 2X, for that week the employee would be required to manually enter 40 hours on the timesheet line "regular pay", 10 hours on the timesheet line "overtime pay", and 10 hours on the timesheet line "double time pay". Leave management is currently managed manually via the submission of a request for leave or via the manager's Microsoft Outlook calendar. Employees are required to manually enter hours in vacation, comp-time, float or other leave timesheet lines. Represented employees' schedules are manually maintained using Excel spreadsheets.

The goal of this project is to implement a modern, user-friendly, and scalable Time and Attendance system that streamlines and improves workforce scheduling and management, automates time entry, approval, tracking, and reporting, leave management request entry, approval, tracking and reporting, based on default schedules, configured rules, and workflow, integrates with our current financial and third-party payroll processing systems, and ensures data security and compliance.

The Agency's established work week begins on Sunday, 12:00 am, and ends Saturday, 11:59 pm. Agency employees work the following standard and alternative work schedules:

- 10/80
- 9/80
- 8/80
- 4/10
- 12 hour shifts with labor balancing bucket
- 12-hour shift relief workers whose regular shifts include 20 days, 240 hours, every 6 weeks

For purposes of this Request for Proposal, the Time and Attendance activities are governed by the various Federal and State laws, rules, and regulations, Agency policies and procedures, and the Local 1245 of the International Brotherhood of Electrical Workers and the Hydroelectric Employees Association MOUs. The Agency's Payroll Unit is part of the Finance Department and is comprised on one full-time Payroll Supervisor, once full-time Payroll Clerk, and one part-time Payroll Clerk.

3. Scope of Work

3.1. Summary

This scope of work summarizes NCPA's requirements for procuring a Time and Attendance Software solution for Northern California Power Agency, located in Roseville, California. The solution must meet functional requirements to include creation of schedules, timesheet pay code rules and approval workflow, leave management, and integration with ADP Workforce Now for payroll processing and Microsoft Dynamics Great Plains ERP system for financial and accounting purposes. Agency employees will access time entry and approval processes through either a responsive desktop user or mobile interface.

The NCPA project team will be comprised of subject matter experts from the NCPA Payroll, Finance, Information Services, and Generation Services units/divisions.

3.2. Timekeeping

NCPA requires the implementation of default timesheets for both represented and unrepresented employees (including exempt and non-exempt). Overtime and other types of special pay will auto populate based on employees' default timesheets and the configured rules. The configured rules for unrepresented employees will be in accordance with Federal and State rules, laws, and regulations and Agency policy and procedures (Appendix C). The configured rules for represented employees will adhere to the Local 1245 of the International Brotherhood of Electrical Workers and the Hydroelectric Employees Association MOUs (Appendix C) and the examples included in Appendix D – Pay Rules for MOUs. Workforce scheduling may be accomplished through the proposers' service product or through a third-party application.

3.3. Leave Management

The solution will include electronic leave management that includes sick leave, vacation, additional float, labor balancing, comp-time, extra holiday hours, and deferred holiday. The solution will contain automated alerts and notifications for leave balances, upcoming expirations, and compliance deadlines. The solution programming will be derived from Appendix C - Agency Policies and Procedures and the Agency's two MOUs and Appendix D – Pay Rules for MOUs. The automated process will require approved leave to feed into and populate employees' timesheets.

Requirements include multiple time off banks that are able to automatically calculate time off accrual based on different employment groups and appropriate accrual rules. The solution will automatically calculate time off bank caps and usage limits and will allow for the ability to transfer leave types between buckets and between employees.

3.4. Shift Scheduling

The Agency's goal is to replace manual shift scheduling done using spreadsheets with an automated solution that enables flexible shift scheduling and tracking and allows supervisors and managers the ability to create, modify, and assign shifts. The requirement is to support recurring schedules and exceptions. The solution will generate notifications and alerts when schedule changes occur. Schedule changes may result in additional special pay types in accordance with the MOUs. Updated schedules will be reflected in updated default timesheets, to be further refined during project development.

3.5. Training

Services shall include training of the NCPA project team and Information Support Services staff to include initial and ongoing technical training materials for integration and oversight tasks. Comprehensive documentation of the software features, policies, and procedures must be provided upon Go-Live. Training should include the following:

- Development and delivery of training materials and sessions for administrators and end users including:
    - System integration points and configuration
    - Workflow rules setup and maintenance
    - User provisioning and access roles
- Onboarding support for the first month after implementation
- Access to user manuals and online help resources

3.6. Support

Proposers will provide the following information for ongoing maintenance support which includes clearly documented support escalation workflow. This should include:

- Regular software updates and enhancements

- Ongoing training and resources to keep users informed of new features and compliance updates
- Cloud-based solution will guarantee uptime of 99.9%
- 24/7 customer support for software issues with defined response/resolution time frames per issue severity
- Clear delineation of vendor's responsibility for system, hardware, and application support
- First point of contact
- Escalation thresholds and responsible parties
- Flowchart or diagram illustrating support workflow

Additional detail for the Scope of Work is provided in Appendix B – Detailed Scope of Work. Responders will complete the enclosed form (out of box, available through customization, required bolt on at additional cost, available through 3rd-party software, in development and available in the future, or requirement is not available) for each of the requested services and will include the completed form with their proposal packages as identified in Section 7.1.4 Submission of Proposals within this RFP. NCPA has indicated the priority of each deliverable in the form (need, would like to have, and wish list).

4. Implementation Timeline

The responder must provide a detailed project timeline outlining key milestones and deliverable dates. The projected duration should not exceed twelve months from the contract signing date.

5. Software Deployment

Deployment of the software must occur in a phased approach to ensure minimal disruption. The first phase of implementation will include timesheet and leave management for unrepresented employees as this will be a less complex deployment. Testing of this phase will conclude once two successful concurrent payrolls have been run in the current production and the test environments. The second phase will include the more complex timesheet, leave management, and shift scheduling for represented employees. Testing of this phase will conclude after six successful concurrent payrolls have been run in the current production and the test environments. These final tests must be conducted for both phases by NCPA project staff and key stakeholders prior to Go-Live.

6. Functional Requirements

6.1. Integration

The timekeeping solution requires seamless data exchanges for payroll processing. Integrations will consist of the following:

- ADP Workforce Now: seamless data exchange for payroll processing
- Direct integration via connectors to the ADP Workforce Now, or indirect integration via data file exchange.
- Microsoft Dynamics GP: real-time or scheduled synchronization of timesheet data or resulting financial data with financial records.

6.2. User Interface

- Mobile Access: iOS and Android compatibility.
- Desktop Access: Web-based interface compatible with major modern browsers.
- User Experience: Intuitive design for employees, managers, and administrators.
- Time Entry: Daily, Weekly, and Bi-Weekly

6.3. Security

All proposed solutions shall include robust security measures and ensure compliance with data protection regulations as reflected in this section and Appendix B Standard Multi-Task Consulting Services Agreement):

- Role-based access control
- Audit trails and activity logging
- Data encryption in transit and at rest
- Multi-factor authentication
- Single Sign On
- Biometric Authentication
- Compliance with labor laws and data privacy regulations (e.g. CCPA)
- Compliant to ISO/IEC 27001:2022 information security standard, which provides a provides a framework and guidelines for establishing, implementing and managing an information security management system (ISMS)
- Adhere to the NIST Special Publication 800-144: Guidelines on Security and Privacy in Public cloud Computing
- Regular security updates and vulnerability assessments

6.4. Other Requirements

- Detail Scope of Work requirements listed included in Appendix A
- Time entry based on NCPA Personnel Policies and Procedures link included in *Appendix* C
- Time entry based on MOU rules available at link in Appendix C
- Time entry and pay-rule configuration based on Appendix D – Pay Rules for Memorandums of Understanding."
- User-definable workflow or rules engine to support the time entry validation including approval process

6.5. Additional Services

Consultant shall perform such other services as may be requested by the Agency. For additional services that may be requested by the Agency, vendors shall provide hourly fee schedule.

7. Proposal Requirements

7.1. General Requirements

7.1.1. Inquiries

Inquiries concerning this RFP **must be received via email by 5:00 p.m. on November 21, 2025** to sondra.ainsworth@ncpa.com. Please reference "Time and Attendance Solution Services Proposals" in the email subject line.

Responses from the Agency will be communicated individually via email to all proposers no later than November 26, 2026. It is the proposer's responsibility to ensure that they access and review any questions and responses emailed to them.

7.1.2. Use of RFI Materials

Materials, responses, or communications submitted in response to the Agency's earlier RFI are not incorporated into this RFP and are non-binding. In the event of any conflict between information provided during the RFI process and the contents of this RFP (including any written addenda), the terms of this RFP shall govern.

7.1.3. Addendums

If it becomes necessary to revise or supplement any part of this RFP, a written addendum will be issued individually via email to all recipients of this RFP and posted on the Agency's website (www.ncpa.com). It is the potential proposer's responsibility to access any addendums and ensure that stated requirements are met.

7.1.4. Submission of Proposals

The following material is required to be received by 5 p.m. PDT, December 24, 2025 via email to sondra.ainsworth@ncpa.com for a proposing firm to be considered:

The Proposal shall include the following:

1. Title Page

   Title page showing the request for proposal's subject and the following:

PROPOSER:

Company: _____

Address: _____

Signed: _____ **Title:** _____

Print Name: _____ **Telephone:** (___) _____

E-mail: _____

Date: _____

2. Table of Contents

3. Transmittal Letter

   A signed letter of transmittal briefly stating the proposer's understanding of the work to be done, the commitment to perform the work in a timely manner, and a statement of why the firm believes itself to be best qualified to perform the engagement.

4. Company Background

   Include legal name, headquarters location, years in business, corporate structure, compliance and certifications, data privacy and security policies, and integration partners.

5. Executive Summary

   Describe your firm's qualifications to complete this Scope of Work, highlighting qualifications and relevant experience in providing timekeeping, leave management, and shift scheduling solutions. Explain why your firm is the best to deliver this Scope of Work and provide examples of your firm's work.

6. Detailed proposal

   A detailed overview of how the solution will meet the needs of NCPA as presented in the Summary and Detailed Scope of Work (Section 3 and Appendix A).The detailed proposal should provide sufficient detail to understand how the scope will be accomplished. Proposers will also include their completed Appendix A – Detailed Scope of Work with their proposal package.

7. Project plan

   A detailed project plan, including timelines, deliverables, and resource allocations.

8. Costs

   Present a concise list of the Scope of Work and the products and services that your firm proposes to provide. Discuss your proposed fee arrangement, include a pricing structure for software licensing, implementation services, and ongoing support.

9. Key Personnel

   Describe the staffing your firm will use to fulfill the Scope of Work. Provide resumes of all key personnel who will be assigned to the Agency. Any changes to the key personnel must be approved by the Agency prior to award.

10. References

    List a minimum of three (3) references for whom comparable services were provided. Provide names and contact information as well as a summary of key results achieved.

11. Financial Statements

    Provide latest two years of audited financial statements.

8. Proposal Evaluation and Selection Process

8.1. General Information

The proposals submitted in response to this solicitation will be evaluated for award based on the Evaluation Criteria described in this section.

NCPA may request additional information from any or all Proposers after the initial evaluation of the proposals to clarify representations, terms, and conditions.

The RFP and resulting Agreement will be awarded to the most responsive Proposer as determined by the Agency at its sole discretion.

The Agency reserves the right, as the interest of the Agency may require, to reject any proposal or to waive any irregularity in the proposals received. NCPA also reserves the right to reject all submittals and to re-advertise or extend the deadline, if necessary.

A proposed Agreement will be forwarded to the successful Proposer. Within ten (10) calendar days thereafter, the successful Proposer is required to deliver to the Agency the required insurance certificates and signed copies of the Agreement. The Proposer's work may not begin until the Agency has received all the required documents and the Agency's Commission has formally approved thereof.

8.2. Effect of RFI Participation

The Agency confirms that responses to the previously issued RFI are not part of this evaluation process. The Agency will not consider whether a proposer did or did not participate in the RFI when evaluating proposals. Only written proposals submitted in response to this RFP and any Agency-issued addenda will be considered.

8.3. Selection Criteria

Overall responsiveness to the RFP is an essential consideration. The evaluation committee will select the Proposer that best fulfills the Agency's requirements and represents the best value to NCPA. No single factor will determine the final award decision. Determination of best value to NCPA shall be based upon the following criteria:

Criteria	Points
Scored:	
Quality and overall value of the proposal	20
Quality of the proposed solution and its ability to meet the implementation, functional, and support requirements of the RFP	20
Firm's experience and technical expertise of the staff implementing the solution	20
Demonstrated successful implementations with customers of similar size, scope, and complexity	20
User experience, interface design, and system integration	20
Total Points	**100**
Pass (P)/Fail (F):	
The firm adheres to the RFP instructions for proposal preparation and submission	P/F
Financial stability of the firm (P=Pass – F=Fail)	P/F

8.4. Time and Attendance Services Selection Schedule

November 14	**Issuance of Request for Proposals (RFP)**
November 21 – 5:00 pm	**Deadline for questions or comments**
November 26	**Deadline for responses to questions or comments to proposers**
December 24 – 5:00 pm	**Deadline for Proposals from prospective proposers**
January 2	**Proposers notified of RFP selection results**
February 19*	**Presented to NCPA Commission for approval and award of contract**

* Planned to occur not later than this date

8.5. Proposal Preparation Costs

The costs of developing proposals are entirely the responsibility of the Proposer and shall not be charged in any manner to the Agency.

8.6. Notice Related to Proprietary/Confidential Data

Proposers are advised that the California Public Records Act (the "Act," Government Code Section 6250 et seq.) provides that any person may inspect or be provided a copy of any identifiable public record or document that is not exempt from disclosure under the Act or other applicable law. Each Proposer shall clearly identify any information within its submission that it intends to ask the Agency to withhold as exempt under the Act. Any information contained in a Proposer's submission that the Proposer believes qualifies for exemption from public Disclosure as "proprietary" or "confidential" must be identified as such at the time of the first submission of the Proposer's response to this RFP. A failure to identify information contained in a Proposer's submission to this RFP as "proprietary" or "confidential" shall constitute a waiver of the Proposer's right to object to the release of such information upon request under the Act. Designation of information as proprietary or confidential does not guarantee that the information will be withheld. The Agency will make an independent determination under the Act.

The Agency favors full and open Disclosure of all such records. The Agency will not expend public funds defending claims for access to, inspection of, or to be provided copies of any such records. Along with each Proposer's response to this RFP, each Proposer is required to submit a signed indemnity agreement, included with its response to this RFP, whereby Proposer shall agree to indemnify and defend the Agency on terms stated therein against all claims or actions brought against it to seek access to or compel Disclosure of any records or documents in the Agency's possession which were submitted to the Agency by any Proposer pursuant to this RFP. The indemnity agreement each Proposer will be required to sign and submit along with its response to this RFP is included in the "Proposal Requirements" section of this RFP.

Any materials submitted by proposers in response to the Agency's RFI are subject to the same treatment under the California Public Records Act as materials submitted under this RFP. RFI responses have been used only in aggregate for planning purposes and will not be evaluated as part of this RFP.

8.7. Time and Attendance Solution Services Agreement

A copy of the Agency's standard Multi-Task Consulting Services Agreement is included in this RFP, See, Appendix A. The Agency may reject proposals that contain exceptions to the terms and conditions included in this RFP and/or Agreement.

The Proposer should note any and all exceptions taken to this Request for Proposal including the terms and conditions of the Agreement included in **APPENDIX B** to this Request for Proposal. The Agency reserves the right to reject any proposal based on noncompliance with the attached Agreement terms and conditions.

8.8. Manner and Time of Agreement Payments

Progress billings may be submitted monthly by written invoice with brief descriptions of discrete milestones met or portions of the work completed to date.

8.9. Indemnification

Consultant shall indemnify, defend with counsel reasonably acceptable to the Agency, and hold harmless the Agency, and its officials, commissioners, officers, employees, agents and volunteers from and against all losses, liabilities, claims, demands, suits, actions, damages, expenses, penalties, fines, costs (including without limitation costs and fees of litigation), judgments and causes of action of every nature arising out of or in connection with any acts or omissions by Consultant, its officers, officials, agents, and employees, except as caused by the sole or gross negligence of Agency. Notwithstanding, should this Agreement be construed as a construction agreement under Civil Code section 2783, then the exception referenced above shall also be for the active negligence of Agency.

APPENDIX A
DETAILED SCOPE OF WORK

		Vendor Response *					
Feature Requirement	**Priority ***	**OOB**	**CUS**	**BOL**	**3RD**	**FUT**	**NA**
Payroll							
Payroll management	N	☐	☐	☐	☐	☐	☐
Leave management	N	☐	☐	☐	☐	☐	☐
Shift Scheduler	WL	☐	☐	☐	☐	☐	☐
Reports, payslips, forms	N	☐	☐	☐	☐	☐	☐
Workflow	N	☐	☐	☐	☐	☐	☐
General Collection of Employee Attendance							
Decentralized automated time and attendance data entry and time reporting capabilites	N	☐	☐	☐	☐	☐	☐
Default time sheet population based on Ex schedules; edits only required for changes	N	☐	☐	☐	☐	☐	☐
Default time sheet population based on NEx shifts and schedule; edits only required for changes	N	☐	☐	☐	☐	☐	☐
Support variety of data collection methods, including terminals/PC entry, web, mobile, and manual	N	☐	☐	☐	☐	☐	☐
Print bi-weekly TS for user-selected EEs as necessary. Not preferred, but may be needed on occasion	WL	☐	☐	☐	☐	☐	☐
Support time collection for EEs who work or clock in/out at various locations throughout the day	N	☐	☐	☐	☐	☐	☐
Ability to track and adjust time in the following manner: earned (vacation/sick/float/comp-time, LB), used (vacation/sick/float/comp-time, LB), paid (vacation, vacation payout, sick, comp time, administrative leave,etc.) unpaid (LWOP, suspension, no show). This is not an exhaustive list	N	☐	☐	☐	☐	☐	☐
Create pay categories field within each rate type to idenfity CalPERS reportable wages.	N	☐	☐	☐	☐	☐	☐
Create pay categories field within each rate type to idenfity 457/401A pensionable wages	N	☐	☐	☐	☐	☐	☐
Timekeeping Entry and Approval							
Support the following types of time entry: EE self-entry, department FOA or Supervisor, and Payroll staff	N	☐	☐	☐	☐	☐	☐
Process and approve time sheets and time reports in a decentralized and electronic format	N	☐	☐	☐	☐	☐	☐
Record time entry in increments of 15 minutes, 1 hour, or 2 hours (may be exceptions for some leaves)	N	☐	☐	☐	☐	☐	☐
Allow NEx to record comp time paid, request comp time balance payout, or comp time accrual (for NEx only)	N	☐	☐	☐	☐	☐	☐
Allow EEs to record CT earned, request CT balance payout, or CT accrual (for NEx only)	N	☐	☐	☐	☐	☐	☐
Allow EEs to record vacation taken and request vacation balance payout (once a year following P&P)	N	☐	☐	☐	☐	☐	☐
Allow EEs to record LB taken and request LB balance payout (once a year following P&P)	N	☐	☐	☐	☐	☐	☐
Allow user-defined comments field in the timesheet	N	☐	☐	☐	☐	☐	☐
Provide administrative rights to managers (e.g., allow managers to enter and submit EE sick time, LWOP)	N	☐	☐	☐	☐	☐	☐
Restrict time entry to pre-established ranges, with authorized override capabilities	WL	☐	☐	☐	☐	☐	☐
Allow overtime approval to occur prior to or after the work has been performed	N	☐	☐	☐	☐	☐	☐
Restrict time entry for future date(s), with authorized override capabilities	N	☐	☐	☐	☐	☐	☐
Periodically reconcile future leave time approved against leave time available and send EE and Supv updates of approved leave in violation of P&P	WL	☐	☐	☐	☐	☐	☐
Allow management review of timecards at detail/summary levels/allow managers to edit TS (W authorization).	N	☐	☐	☐	☐	☐	☐
Display EEs' TS totals to enable timekeeper administration (e.g., supv) to validate, confirm, and approve data	N	☐	☐	☐	☐	☐	☐
Notify supv when leave requested or TS submitted via email or system notification	N	☐	☐	☐	☐	☐	☐
Ability to notify EEs/supv of rejected timecards and/or leave requests (via workflow).	N	☐	☐	☐	☐	☐	☐
Ability to alert user if trying to make an update/change to TS and another person is in already in TS	N	☐	☐	☐	☐	☐	☐
Hold data entered online in suspension or pending status until approved electronically and released	N	☐	☐	☐	☐	☐	☐

APPENDIX A
DETAILED SCOPE OF WORK

		Vendor Response *					
Feature Requirement	**Priority ***	**OOB**	**CUS**	**BOL**	**3RD**	**FUT**	**NA**
Designation of a back-up for TS and leave requests (if applicable) approval	N	☐	☐	☐	☐	☐	☐
Adjust time entries in current period (and not yet paid). Ability to adjust time entries in prior periods, with an audit trail of change (user, date, change).	N	☐	☐	☐	☐	☐	☐
Perform edits to previous pay periods and recalculate pay/leave accruals from previous pay periods forward	N	☐	☐	☐	☐	☐	☐
Allow EE to enter time for multiple positions in same pay period	N	☐	☐	☐	☐	☐	☐
Allow EE to charge multiple projects or account codes	N	☐	☐	☐	☐	☐	☐
Create default charge codes or options for EE	N	☐	☐	☐	☐	☐	☐
Validate timesheet for 80 hours work hours with exception override	N	☐	☐	☐	☐	☐	☐
Creat rule - regular AWS day off occurs on a holiday, EE must select alternative day for holiday pay in the PPE	N	☐	☐	☐	☐	☐	☐
Create holiday rules re: holiday falls on weekend, etc.	N	☐	☐	☐	☐	☐	☐
Leave Time Accrual and Usage							
Calculate, capture, and track leave for multiple leave types, including (but not limited to): vacation, sick, bereavement, Additional Float (accrued, used, and balance), Educational, holidays, CT (NEx EEs only), Medical, Family Medical Leave (used and balance), military leave with pay (10 days/year), military leave without pay (active duty), funeral/bereavement leave, administrative leave (paid leave), and suspension (disciplinary leave without pay).	N	☐	☐	☐	☐	☐	☐
Track all types of leaves in user-defined units and capture and maintain breaks in service (unpaid leave status)	N	☐	☐	☐	☐	☐	☐
Accrue vacation/sick leave time every pay period for all permanent employees in a paid work status. The system must have the ability to temporarily suspend leave accrual during unpaid leave periods.	N	☐	☐	☐	☐	☐	☐
Calculate and account for all leave time at varying accrual rates and set and maintain leave and vacation accrual schedules by job class (or other user-defined classification).	N	☐	☐	☐	☐	☐	☐
Define and enforce user-defined rules for holiday accrual for EE groups and types as defined by the Agency	N	☐	☐	☐	☐	☐	☐
Set a maximum for cumulative (rollover) leave accrual	N	☐	☐	☐	☐	☐	☐
Perform electronic approval processes to approve overtime and leave time in accordance with Agency policy	N	☐	☐	☐	☐	☐	☐
Give EEs online access to leave request status (e.g., pending, under review, etc.)	WL	☐	☐	☐	☐	☐	☐
Forecast leave balances and apply to future leave request.	WIL	☐	☐	☐	☐	☐	☐
Restrict or allow sick and vacation leave to be used only after it is earned subject to override authorization.	WL	☐	☐	☐	☐	☐	☐
Payroll Rules for Time and Leave Purposes							
Accommodate an infinite number of EEs, departments, jobs, shifts, pay rules, and other user-defined variables	N	☐	☐	☐	☐	☐	☐
Perform time and rate calculations	N	☐	☐	☐	☐	☐	☐
Update pay rules/set effective dates as needed (including retroactive, immediate/real-time, next payroll, etc.)	N	☐	☐	☐	☐	☐	☐
Establish the NCPA's work week beginning on Sunday at 12:00 a.m. and ending on Saturday at 11:59 p.m	N	☐	☐	☐	☐	☐	☐
Maintain a calendar of all holidays and populate timecards and maintain holiday rules as needed	N	☐	☐	☐	☐	☐	☐
Establish standard hours/schedules, which will then show as defaults in the timesheets for Ex and NEx EES	N	☐	☐	☐	☐	☐	☐
Integrate with ADP Workforce Now for processing and Microsoft Dynamics Great Plains	N	☐	☐	☐	☐	☐	☐
Time & Attendance History (Data Storage) and Rules Availability							
For purposes of legal or otherwise historical information, the system must have the ability to store time and attendance history data, including, but not limited to: i. Employee Name ii. Time/leave data iii. Manager approval history.	N	☐	☐	☐	☐	☐	☐
	N	☐	☐	☐	☐	☐	☐
Store time and attendance history for an indefinite amount of time, to be specified by the Agency.	N	☐	☐	☐	☐	☐	☐
Accommodate Fair Labor Standards Act (FLSA) laws without customization	N	☐	☐	☐	☐	☐	☐
Adhere to all current and future local, State, and Federal laws, rules, and regulations	N	☐	☐	☐	☐	☐	☐

APPENDIX A
DETAILED SCOPE OF WORK

		Vendor Response *					
Feature Requirement	**Priority ***	**OOB**	**CUS**	**BOL**	**3RD**	**FUT**	**NA**
Integration requirements							
ADP Workforce Now - Third Party Payroll Processor	N	☐	☐	☐	☐	☐	☐
ERP - Microsoft Dynamics Great Plains (GP)	N	☐	☐	☐	☐	☐	☐
Shift scheduler	WL	☐	☐	☐	☐	☐	☐
*							
Vendor Response Key	**Abbreviation Key**						
OOB - requirement is provided Out-of-the-Box	CT - Compensatory time pay						
CUS - requirement is available through customization	EE - employee						
BOL - requirement is available through a bolt-on at additional cost	ER - employer						
3RD -requirement is available through integration with 3rd-party software	Ex - exempt employee						
FUT - requirement will be available in the near future (define a timeframe)	FOA - Facility Office Administrator						
NA - requirement is unavailable	LB - labor balancing						
	LWOP - Leave without Pay						
	NEx - non-exempt employee						
Agency Prioritization Scale	P&P - Agency Policy & Procedure						
N - need as firm requirement	PPE - Pay period ended						
WL - would like to have but not required	Supv - Supervisor						
WIL - Wish List	TS - timesheet(s)						
UV - Up to Vendor	W - with						

APPENDIX B
STANDARD MULTI-TASK CONSULTING SERVICES AGREEMENT

MULTI-TASK CONSULTING SERVICES AGREEMENT BETWEEN THE NORTHERN CALIFORNIA POWER AGENCY AND _____

This Consulting Services Agreement ("Agreement') is made by and between the Northern California Power Agency, a joint powers agency with its main office located at 651 Commerce Drive, Roseville, CA 95678-6420 ("Agency") and _____, a ____ [sole proprietorship, partnership, corporation] with its office located at _____ ("Consultant") (together sometimes referred to as the "Parties") as of _____, 20__ ("Effective Date") in Roseville, California.

Section 1. **SERVICES.** Subject to the terms and conditions set forth in this Agreement, Consultant shall provide to Agency the services described in the Scope of Services attached hereto as Exhibit A and incorporated herein ("Services"), at the time and place and in the manner specified therein.

1.1 **Term of Agreement.** The term of this Agreement shall begin on the Effective Date and shall end when Consultant completes the Services, or no later than five (5) years from the date this Agreement was signed by Agency, whichever is shorter, unless terminated earlier in accordance with Section 8 ("Termination") below.

1.2 **Standard of Performance.** Consultant shall perform the Services in the manner and according to the standards observed by a competent practitioner of the profession in which Consultant is engaged and for which Consultant is providing the Services. Consultant represents that it is licensed, qualified and experienced to provide the Services set forth herein.

1.3 **Assignment of Personnel.** Consultant shall assign only competent personnel to perform the Services. In the event that Agency, in its sole discretion, at any time during the term of this Agreement, requests the reassignment of any such personnel, Consultant shall, immediately upon receiving written notice from Agency of such request, reassign such personnel.

[Alternative 1.3: Use the following alternative Section 1.3 if the vendor will have unescorted physical or electronic access to any NCPA facility or system.]

1.3 **Assignment of Personnel.** Consultant shall assign only competent personnel to perform the Services. In the event that Agency, in its sole discretion, at any time during the term of this Agreement, requests the reassignment of any such personnel, Consultant shall, immediately upon receiving written notice from Agency of such request, reassign such personnel. Consultant shall ensure all personnel assigned to perform the Services meet and follow the requirements specified below for unescorted physical or electronic access:

- Complete a Personnel Risk Assessment, provided by the Consultant, comprised of the following: 1) verification of identification, (2) criminal history reference check for the previous seven (7) years, and 3) written confirmation that the results of the criminal history reference check are within the acceptance criteria defined by Agency and included in Exhibit C, and

- Complete an initial security training and annual training thereafter, both of which will be provided by Agency.

Consultant shall notify Agency within 24 hours of voluntary separation or termination of one of its personnel who has been granted unescorted physical or electronic access to Agency facilities or systems. And, Consultant shall notify the Agency within 24 hours of any lost or stolen Agency issued badges or electronic access authenticators. Failure to timely notify Agency of voluntary termination or separation, or loss of access badge or authenticator may be considered by Agency as Consultant breach of this Agreement allowing Agency to immediately terminate this Agreement without liability to Agency.

1.4 **Services Provided.** Services provided under this Agreement by Consultant may include Services directly to the Agency or, as requested by the Agency and consistent with the terms of this Agreement, to Agency members, Southern California Public Power Authority ("SCPPA") or SCPPA members.

1.5 **Request for Services to be Performed.** At such time that Agency determines to use Consultant's Services under this Agreement, Agency shall issue a Purchase Order. The Purchase Order shall identify the specific services to be performed ("Requested Services"), may include a not-to-exceed monetary cap on Requested Services and expenditures authorized by that Purchase Order, and a time by which the Requested Services shall be completed. Consultant shall have seven calendar days from the date of the Agency's issuance of the Purchase Order in which to respond in writing that Consultant chooses not to perform the Requested Services. If Consultant agrees to perform the Requested Services, begins to perform the Requested Services, or does not respond within the seven-day period specified, then Consultant will have agreed to perform the Requested Services on the terms set forth in the Purchase Order, this Agreement and its Exhibits.

1.6 **Changes in Name, Ownership, or Control.** Consultant shall notify the Agency in writing of any change in name, ownership or control of Consultant's [proprietorship/partnership/corporation] or of any subcontractor. Change of ownership or control of Consultant's [proprietorship/partnership/corporation] shall require an amendment to the Agreement.

Section 2. **COMPENSATION.** Agency hereby agrees to pay Consultant an amount **NOT TO EXCEED** _____ dollars ($_____) for the Services, which shall include all fees, costs, expenses and other reimbursables, as set forth in Consultant's fee schedule, attached

hereto and incorporated herein as Exhibit B. This dollar amount is not a guarantee that Agency will pay that full amount to the Consultant, but is merely a limit of potential Agency expenditures under this Agreement.

2.1 **Invoices.** Consultant shall submit invoices, not more often than once a month during the term of this Agreement, based on the cost for services performed and reimbursable costs incurred prior to the invoice date. Invoices shall contain the following information:

- The beginning and ending dates of the billing period;
- Services performed;
- The Purchase Order number authorizing the Services;
- At Agency's option, the total number of hours of work performed under the Agreement by Consultant and each employee, agent, and subcontractor of Consultant performing services hereunder; and
- At Agency's option, when the Consultant's Scope of Work identifies tasks, for each work item in each task, a copy of the applicable time entries showing the name of the person doing the work, the hours spent by each person, a brief description of the work, and each reimbursable expense, with supporting documentation, to Agency's reasonable satisfaction.

Invoices shall be sent to:

Northern California Power Agency
651 Commerce Drive
Roseville, California 95678
Attn: Accounts Payable
AcctsPayable@ncpa.com

2.2 **Monthly Payment.** Agency shall make monthly payments, based on invoices received, for services satisfactorily performed, and for authorized reimbursable costs incurred. Agency shall have thirty (30) days from the receipt of an invoice that complies with all of the requirements above to pay Consultant.

2.3 **Payment of Taxes.** Consultant is solely responsible for the payment of all federal, state and local taxes, including employment taxes, incurred under this Agreement.

2.4 **Authorization to Perform Services.** The Consultant is not authorized to perform any Services or incur any costs whatsoever under the terms of this Agreement until receipt of a Purchase Order from the Contract Administrator.

2.5 **Timing for Submittal of Final Invoice.** Consultant shall have ninety (90) days after completion of its Services to submit its final invoice for the Requested Services. In the event Consultant fails to submit an invoice to Agency for any amounts due within the ninety (90) day period, Consultant is deemed to have waived its right to collect its final payment from Agency.

Section 3. **FACILITIES AND EQUIPMENT.** Except as set forth herein, Consultant shall, at its sole cost and expense, provide all facilities and equipment that may be necessary to perform the Services.

Section 4. **INSURANCE REQUIREMENTS.** Before beginning any work under this Agreement, Consultant, at its own cost and expense, shall procure the types and amounts of insurance listed below with insurance companies having an A.M. Best rating of A/VIII or better, or otherwise acceptable to Agency. Consultant shall maintain the types and amounts of insurance listed below for the period covered by this Agreement, unless otherwise specified below.

4.1 All Policies Requirements.

4.1.1 Additional Insured. Agency shall be included as additional insureds on each of the Consultant's policies except for Workers' Compensation and Professional Liability. The additional insured protection for the commercial general liability and umbrella/excess liability shall include both ongoing and completed operations coverage. Additional insured coverage shall not be limited to the minimum amounts of insurance required by written agreement and shall extend through the expiration of all applicable statutes of limitation and statutes of repose.

4.1.2 Primary/Non-Contributory. Consultant's insurance coverage shall be primary and any insurance or self-insurance of Agency shall be excess and non-contributory to Consultant's coverage.

4.1.3 Severability of Interests. All Consultant policies shall provide, or be endorsed to include, a severability of interests provision. There shall be no exclusion for cross liability.

4.1.4 Deductibles. Any deductibles or self-insured retentions in excess of $250,000 shall be subject to prior review and approval by Agency at Agency's sole discretion. If approved by Agency, such approval shall be in writing. Consultant is responsible for payment of all deductibles and self-insured retentions.

4.1.5 Verification of coverage. Prior to beginning any work under this Agreement, five (5) business days prior to insurance coverage renewals, and upon Agency's written request, Consultant shall provide Agency with (1) a Certificate of Insurance that demonstrates compliance with all applicable insurance provisions contained herein and (2) waiver of subrogation, additional insured and primary/non-contributory policy endorsements. Agency's review of coverage does not relieve Consultant of the requirements of Section 4.

The failure of Agency to identify any deficiencies in the certificate(s) or endorsement(s) provided by Consultant shall not be construed as acceptance of the noncompliant coverage nor a waiver of Consultant's

obligation to maintain coverage compliant with the requirements set forth herein. Agency does not represent or warrant that coverage and limits will be adequate to protect Consultant from loss, and such coverage and limits required herein shall not be deemed a limitation on Consultant's liability under this Agreement. Agency has not waived, and is not estopped from asserting against Consultant, any claim or claims alleging Consultant's breach of any of its insurance procurement or maintenance obligations.

Furthermore, Consultant agrees that if it does not keep the insurance coverages required by this Agreement in full force and effect, Agency may either (i) immediately terminate this Agreement, or (ii) take out the necessary insurance and pay the premium(s) thereon at Consultant's expense. Agency reserves the right to obtain a full certified copy of any insurance policy endorsement. Failure to exercise this right shall not constitute a waiver of the right to exercise later.

4.1.6 **Notice of Reduction in or Cancellation of Coverage.** Consultant shall provide at least thirty (30) days prior written notice to Agency of any reduction in scope or amount, cancellation, or modification adverse to Agency of the policies referenced in Section 4.

4.1.7 **Higher Limits.** If Consultant maintains higher limits than the minimums specified herein, the Agency shall be entitled to coverage for the higher limits maintained by the Consultant.

4.1.8 **Additional Certificates and Endorsements.** If Consultant performs Work for Agency members, SCPPA and/or SCPPA members pursuant to this Agreement, Consultant shall provide the certificates of insurance and policy endorsements, as referenced in Section 4.1.5, naming the specific Agency member, SCPPA and/or SCPPA member for which the Work is to be performed.

4.1.9 **Waiver of Subrogation.** Consultant agrees to waive, and shall cause all of its insurers and subcontractors to waive, all rights of subrogation and set-off against Agency. All insurance policies shall be endorsed to provide such waivers of subrogation.

4.2 **Consultant's Obligation.** Consultant shall be solely responsible for ensuring that all equipment, vehicles and other items utilized in the performance of Work are operated, provided or otherwise utilized in a manner that ensures they are and remain covered by the policies referenced in Section 4 during this Agreement. Consultant shall also ensure that all workers involved in the provision of Work are properly classified as employees, agents or independent contractors and are and remain covered by any and all workers' compensation insurance required by applicable law during this Agreement.

4.3 **Workers' Compensation & Employer's Liability Insurance.** If Consultant employs any person, Consultant shall maintain Statutory Workers' Compensation Insurance and Employer's Liability Insurance in compliance with all applicable federal, state and local laws, regulations and statutes, for any and all persons employed directly or indirectly by Consultant. Consultant shall maintain Employer's Liability insurance with limits of not less than one million dollars ($1,000,000) for bodily injury by per accident, $1,000,000 for bodily injury by disease (each employee), $1,000,000 for bodily injury by disease (policy limit). When applicable, an alternate employer endorsement shall be endorsed to the Workers' Compensation coverage naming Agency as an alternate employer.

4.4 **Commercial General Liability Insurance.** Consultant shall maintain commercial general liability insurance with limits no less than $2,000,000 per occurrence, $2,000,000 in the aggregate written on an occurrence ISO Form CG 00 01 04 13, or other equivalent form acceptable to Agency. Aggregate limits shall apply on a per project or per location basis. Products-completed operations coverage shall apply through the expiration of all applicable statutes of limitation and statutes of repose. Such coverage shall include, with no sublimit or exclusion: broad form third party bodily injury, including death; broad form property damage, including loss of use thereof; premises & operations; contractual liability, including tort liability of another assumed in a written agreement; liability for work within 50 feet of a railroad or railroad right of way; independent contractors; sudden & accidental pollution liability; wildfire liability, including suppression costs; fire, explosion and underground damage (XCU coverage); and include defense coverage outside the limits.

4.5. **Business Automobile Liability.** Consultant shall maintain automobile liability insurance for all owned, non-owned, hired and leased vehicles, including loading and unloading, with limits no less than $2,000,000 combined single limit for bodily injury and property damage. Coverage shall be at least as broad as form CA 0001 (current edition). Coverage shall include pollution coverage on ISO Form CA 99 48, or its equivalent. If the work includes transportation hazardous waste, a compliant MCS-90 shall be endorsed.

4.6 **Umbrella/Excess Liability Insurance.** Consultant may use Umbrella or Excess policies to provide the coverage amounts required by this Agreement. Umbrella or Excess policies are acceptable provided that all of the Primary and Umbrella or Excess Policies shall provide all of the insurance coverages herein required, including, but not limited to, primary and non-contributory, additional insured, Self-Insured Retentions (SIRs), indemnity, and defense requirements. The Umbrella or Excess policies shall be provided on a true "following form" or broader coverage basis, with coverage at least as broad as provided on the underlying Commercial General Liability and/or Automobile insurance. No insurance policies maintained by the Agency, whether primary or excess, and which also apply to a loss covered hereunder, shall be called upon to contribute to a loss until the Consultant's primary and excess liability policies are exhausted.

[Sponsor to consider adding the following additional language depending on the Scope of Work and the inherent risks involved.]

Consultant shall maintain umbrella/excess liability insurance on a follow-form basis, including drop down coverage, with limits no less than $5,000,000 per occurrence/aggregate. Such coverage shall be on an occurrence form and shall provide coverage in excess of the Employer's Liability, Commercial General Liability, and Automobile Liability insurance. Such coverage shall not contain any endorsements that restrict the underlying policies or exclude cross liability.

[Use the following Section 4.X if the Work involves software, NCPA's network, SCADA, dispatch, or operations systems]

4. **Cyber Risk Liability.** Consultant shall maintain cyber risk liability insurance with an aggregate limit of not less than $5,000,000. Such insurance shall cover any and all errors, omissions or negligent acts arising in or connected with the performance of the Scope of Work under this Agreement. Such cyber risk liability insurance shall include, but not be limited to, coverage of claims and losses with respect to network risks (such as data breaches, unauthorized access/use, ID theft, invasion of privacy, damage/loss/theft of data, degradation, downtime, spread of virus, denial of service, etc.), failure to supply, and intellectual property infringement (such as copyrights, trademarks, service marks and trade dress). No exclusions shall be listed within the policy for unencrypted, media or portable devices. Notwithstanding any other provision of this Agreement, if coverage is provided on a claims-made form, Consultant shall purchase and maintain a two-year extended reporting period coverage following termination of this Agreement only in the event that the policy is canceled or non-renewed**.**

Section 5. **INDEMNIFICATION AND CONSULTANT'S RESPONSIBILITIES.**

5.1 **Effect of Insurance.** Agency's acceptance of insurance certificates and endorsements required under this Agreement does not relieve Consultant from liability under this indemnification and hold harmless clause. This indemnification and hold harmless clause shall apply to any damages or claims for damages whether or not such insurance policies shall have been determined to apply. By execution of this Agreement, Consultant acknowledges and agrees to the provisions of this Section and that it is a material element of consideration.

[Use the following in all agreements, except as noted below.]

5.2 **Scope.** Consultant shall indemnify, defend with counsel reasonably acceptable to the Agency, and hold harmless the Agency, and its officials, commissioners, officers, employees, agents and volunteers from and against all losses, liabilities, claims, demands, suits, actions, damages, expenses, penalties, fines, costs (including without limitation costs and fees of litigation), judgments and causes of action of every nature arising out of or in connection with any acts or omissions by Consultant, its officers, officials, agents, and employees, except as caused by the sole or gross negligence of Agency. Notwithstanding, should this Agreement

be construed as a construction agreement under Civil Code section 2783, then the exception referenced above shall also be for the active negligence of Agency.

[Use the following solely in agreements with "design professionals", defined as (1) licensed architects, (2), licensed engineers, (3) licensed landscape architects, and (4) licensed land surveyors.]

5.2 **Scope.** Consultant shall indemnify, defend with counsel reasonably acceptable to the Agency, and hold harmless the Agency and its officials, commissioners, officers, employees, and volunteers from and against any and all claims to the extent that the claims arise out of, pertain to or relate to the negligence, recklessness or willful misconduct of the Consultant in its performance of Services under this Agreement. Consultant shall bear all losses, costs, damages, expense and liability of every kind, nature and description to the extent that they arise out of, pertain to, or relate to such claims, whether directly or indirectly ("Liabilities"). Such obligations to defend, hold harmless and indemnify the Agency shall not apply to the extent that such Liabilities are caused by the negligence, active negligence, or willful misconduct of the Agency. This indemnity does not apply to liability for damages for bodily injury, property damage or other loss, arising from the sole negligence, active negligence or willful misconduct by the Agency, its officers, official employees, and volunteers. If it is finally adjudicated that liability is caused by the comparative active negligence or willful misconduct of the Agency, then Consultant's indemnification and defense obligations shall be reduced in proportion to the established comparative liability of the Agency and shall not exceed the Consultant's proportionate percentage of fault.

As respects all acts or omissions which do not arise directly out of the performance of design professional services, including but not limited to those acts or omissions normally covered by general and automobile liability insurance, and to the full extent permitted by law, Consultant agrees to indemnify, defend and hold harmless the Agency, its officers, officials, agents, employees, and volunteers from and against any claims, demands, losses, liability of any kind or nature (including liability for claims, suits, actions, arbitration proceedings, administrative proceedings, regulatory proceedings, losses, expenses or costs of any kind, whether actual, alleged or threatened, including attorney's fees and costs, court costs, interest, defense costs, and expert witness fees) where the same arise out of, are in connection with, are a consequence of, or are in any way attributable to, in whole or in part, the performance of this Agreement by Consultant or by any individual or entity for which Consultant is legally liable, including but not limited to officers, agents, employees or sub-contractors of Consultant, excepting those which arise out of the active negligence, sole negligence or willful misconduct of the Agency, its officers, officials, employees and volunteers.

5.3 **Offset Compensation.** Agency shall have the right to offset against any compensation due Consultant under this Agreement any amount due Agency from Consultant as a result of Consultant's failure to pay Agency promptly any

indemnification arising under this Section 5 of this Agreement and any amount due Agency from Consultant arising from Consultant's failure either to (i) pay taxes on amounts received pursuant to this Agreement or (ii) comply with applicable workers' compensation laws.

Section 6. STATUS OF CONSULTANT.

6.1 Independent Contractor. Consultant is an independent contractor and not an employee of Agency. Agency shall have the right to control Consultant only insofar as the results of Consultant's Services and assignment of personnel pursuant to Section 1; otherwise, Agency shall not have the right to control the means by which Consultant accomplishes Services rendered pursuant to this Agreement. Notwithstanding any other Agency, state, or federal policy, rule, regulation, law, or ordinance to the contrary, Consultant and any of its employees, agents, and subcontractors providing services under this Agreement shall not qualify for or become entitled to, and hereby agree to waive any and all claims to, any compensation, benefit, or any incident of employment by Agency, including but not limited to eligibility to enroll in the California Public Employees Retirement System (PERS) as an employee of Agency and entitlement to any contribution to be paid by Agency for employer contributions and/or employee contributions for PERS benefits.

Consultant shall indemnify, defend, and hold harmless Agency for the payment of any employee and/or employer contributions for PERS benefits on behalf of Consultant or its employees, agents, or subcontractors, as well as for the payment of any penalties and interest on such contributions, which would otherwise be the responsibility of Agency. Consultant and Agency acknowledge and agree that compensation paid by Agency to Consultant under this Agreement is based upon Consultant's estimated costs of providing the Services, including salaries and benefits of employees, agents and subcontractors of Consultant.

Consultant shall indemnify, defend, and hold harmless Agency from any lawsuit, administrative action, or other claim for penalties, losses, costs, damages, expense and liability of every kind, nature and description that arise out of, pertain to, or relate to such claims, whether directly or indirectly, due to Consultant's failure to secure workers' compensation insurance for its employees, agents, or subcontractors.

Consultant agrees that it is responsible for the provision of group healthcare benefits to its fulltime employees under 26 U.S.C. § 4980H of the Affordable Care Act. To the extent permitted by law, Consultant shall indemnify, defend and hold harmless Agency from any penalty issued to Agency under the Affordable Care Act resulting from the performance of the Services by any employee, agent, or subcontractor of Consultant.

6.2 Consultant Not Agent. Except as Agency may specify in writing, Consultant shall have no authority, express or implied, to act on behalf of Agency in any

capacity whatsoever as an agent. Consultant shall have no authority, express or implied, pursuant to this Agreement to bind Agency to any debt, obligation, or liability whatsoever. Consultant shall not represent that it is, or that any of its agents or employees are, in any manner agents or employees of Agency.

6.3 **Assignment and Subcontracting.** This Agreement contemplates personal performance by Consultant and is based upon a determination of Consultant's unique professional competence, experience, and specialized professional knowledge. A substantial inducement to Agency for entering into this Agreement was and is the personal reputation and competence of Consultant. Consultant may not assign this Agreement or any interest therein without the prior written approval of the Agency. Consultant shall not subcontract any portion of the performance contemplated and provided for herein, other than to the subcontractors identified in Exhibit A, without prior written approval of the Agency. Where written approval is granted by the Agency, Consultant shall supervise all work subcontracted by Consultant in performing the services and shall be responsible for all work performed by a subcontractor as if Consultant itself had performed such work. The subcontracting of any work to subcontractors shall not relieve Consultant from any of its obligations under this Agreement with respect to the services and Consultant is obligated to ensure that any and all subcontractors performing any services shall be fully insured in all respects and to the same extent as set forth under Section 4, to Agency's satisfaction.

6.4 **Certification as to California Energy Commission.** If requested by the Agency, Consultant shall, at the same time it executes this Agreement, execute Exhibit D.

Section 7. LEGAL REQUIREMENTS.

7.1 **Governing Law.** The laws of the State of California shall govern this Agreement.

7.2 **Compliance with Applicable Laws.** Consultant and its subcontractors and agents, if any, shall comply with all laws applicable to the performance of the work hereunder.

7.3 **Licenses and Permits.** Consultant represents and warrants to Agency that Consultant and its employees, agents, and subcontractors (if any) have and will maintain at their sole expense during the term of this Agreement all licenses, permits, qualifications, and approvals of whatever nature that are legally required to practice their respective professions.

Section 8. TERMINATION AND MODIFICATION.

8.1 **Termination.** Agency may cancel this Agreement at any time and without cause upon ten (10) days prior written notice to Consultant.

In the event of termination, Consultant shall be entitled to compensation for Services satisfactorily completed as of the effective date of termination; Agency, however, may condition payment of such compensation upon Consultant delivering to Agency any or all records or documents, as referenced in Section 9.1 hereof.

8.2 **Amendments.** The Parties may amend this Agreement only by a writing signed by all the Parties.

8.3 **Survival.** All obligations arising prior to the termination of this Agreement and all provisions of this Agreement allocating liability between Agency and Consultant and pertaining to the handling and non-disclosure of confidential information shall survive the termination of this Agreement unless specifically provided otherwise in this Agreement.

8.4 **Options upon Breach by Consultant.** If Consultant materially breaches any of the terms of this Agreement, including but not limited to those set forth in Section 4, Agency's remedies shall include, but not be limited to, the following:

8.4.1 Immediately terminate the Agreement;

8.4.2 Retain the plans, specifications, drawings, reports, design documents, and any other work product prepared by Consultant pursuant to this Agreement;

8.4.3 Retain a different consultant to complete the Services not finished by Consultant; and/or

8.4.4 Charge Consultant the difference between the costs to complete the Services that is unfinished at the time of breach and the amount that Agency would have paid Consultant pursuant hereto if Consultant had completed the Services.

Section 9. RECORDS, CONFIDENTIALITY, SECURITY AND NOTIFICATION.

9.1 Keeping and Status of Records.

9.1.1 **Records Created as Part of Consultant's Performance.** All reports, data, maps, models, charts, studies, surveys, photographs, memoranda, plans, studies, specifications, records, files, or any other documents or materials, in electronic or any other form, that Consultant prepares or obtains pursuant to this Agreement ("Agency Records") and that relate to the matters covered hereunder shall be the property of the Agency. Consultant hereby agrees to deliver those documents to the Agency upon termination of the Agreement. Agency and Consultant agree that, unless approved by Agency in writing, Consultant shall not release to any non-parties to this Agreement any data, plans, specifications, reports and

other documents. Furthermore, Consultant shall not use Agency Records for any purpose other than to facilitate this Agreement.

9.1.2 **Consultant's Books and Records.** Consultant shall maintain any and all records or other documents evidencing or relating to charges for Work or expenditures and disbursements charged to the Agency under this Agreement for a minimum of three (3) years, or for any longer period required by law, from the date of final payment to the Consultant under this Agreement.

9.1.3 **Inspection and Audit of Records.** Any records or documents that this Agreement requires Consultant to maintain shall be made available for inspection, audit, and/or copying at any time during regular business hours, upon oral or written request of the Agency. Under California Government Code Section 8546.7, if the amount of public funds expended under this Agreement exceeds ten thousand dollars ($10,000), the Agreement shall be subject to the examination and audit of the State Auditor, at the request of Agency or as part of any audit of the Agency, for a period of three (3) years after final payment under this Agreement.

9.2 **Confidential Information and Disclosure.**

9.2.1 **Confidential Information.** The term "Confidential Information", as used herein, shall mean any and all confidential, dam safety, Critical Energy/Electrical Infrastructure Information (CEII)[1], proprietary, proprietary, or trade secret information, whether written, recorded, electronic, oral or otherwise, where the Confidential Information is made available in a tangible medium of expression and marked in a prominent location as confidential, proprietary and/or trade secret information. "Confidential Information" also includes all data, documents, discussion, or other information developed or received by Consultant for performance of this Agreement, including but not limited to payroll, personnel, and other private information.

[1] CEII is specific engineering, vulnerability, or detailed design information about proposed or existing critical infrastructure (physical or virtual) that:

1. Relates details about the production, generation, transmission, or distribution of energy;
2. Could be useful to a person planning an attack on critical infrastructure;
3. Is exempt from mandatory disclosure under the Freedom of Information Act; and
4. Gives strategic information beyond the location of the critical infrastructure.

Critical energy/electric infrastructure means a system or asset of the bulk-power system, (physical or virtual) the incapacity or destruction of which would negatively affect:

- national security,
- economic security,
- public health or safety, or
- any combination of such matters.

(Critical Energy/Electric Infrastructure Information (CEII) | Federal Energy Regulatory Commission (ferc.gov),

Confidential Information shall not include information that: (a) was already known to the Receiving Party or is otherwise a matter of public knowledge, (b) was disclosed to Receiving Party by a third party without violating any confidentiality agreement, (c) was independently developed by Receiving Party without reverse engineering, as evidenced by written records thereof, or (d) was not marked as Confidential Information in accordance with this section.

9.2.2 **Restricted Use of Confidential Information.** A party shall not use Confidential Information for any purpose other than to facilitate this Agreement.

9.2.3 **Non-Disclosure of Confidential Information.** During the term of this Agreement, either party may disclose (the "Disclosing Party") Confidential Information to the other party (the "Receiving Party"). The Receiving Party: (a) shall hold the Disclosing Party's Confidential Information in confidence and with the same degree of care it uses to protect its own confidential information, but in no event using less than a reasonable standard of care; (b) shall not disclose Confidential Information to any employee or Consultant unless such person needs access in order to facilitate the Agreement,; and (c) shall take all reasonable steps to prevent any unauthorized possession, use, copying, transfer or disclosure of such Confidential Information.

9.2.4 **Permitted Disclosure.** Notwithstanding the foregoing, the following disclosures of Confidential Information are allowed. Receiving Party shall endeavor to provide prior written notice to Disclosing Party of any permitted disclosure made pursuant to Section 9.2.4.2 or 9.2.4.3. Disclosing Party may seek a protective order, including without limitation, a temporary restraining order to prevent or contest such permitted disclosure; provided, however, that Disclosing Party shall seek such remedies at its sole expense. Neither party shall have any liability for such permitted disclosures:

9.2.4.1 Disclosure to employees, agents, Consultants, subcontractors or other representatives of Receiving Party that have a need to know in connection with this Agreement.

9.2.4.2 Disclosure in response to a valid order of a court, government or regulatory agency or as may otherwise be required by law; and

9.2.4.3 Disclosure by Agency in response to a request pursuant to the California Public Records Act.

9.2.5 **Handling of Confidential Information.** Upon conclusion or termination of the Agreement, Receiving Party shall return to Disclosing Party or destroy Confidential Information (including all copies thereof). Notwithstanding the foregoing, the Receiving Party may retain copies of

such Confidential Information, subject to the confidentiality provisions of this Agreement in files of Receiving Party's representatives where such copies are necessary to comply with applicable law.

9.2.6 Unauthorized Disclosure.

9.2.6.1 Security Breach. Security Breach means (a) any actual or reasonably suspected unauthorized use of, loss of, access to or disclosure of Agency Records or Agency Confidential Information or (b) security breach (or substantially similar term) as defined with applicable law.

9.2.6.2 Action Upon Unauthorized Disclosure. If either party believes there has been a Security Breach, such party must notify the other party upon the earlier of forty-eight (48) hours after discovery or any timeframe required by applicable law unless legally prohibited from doing so. Each party will reasonably assist the other party in mitigating or remediating any potential damage where appropriate, including but not limited to providing any notice and relief statutorily required for Agency or Consultant under Civil Code section 1798.29 or other applicable law. Each party shall bear the costs of such remediation, mitigation, notice and/or relief to the extent the breach or security incident was caused by it or if such part is the recipient of the Security Breach. As soon as reasonably practicable after any such Security Breach, Agency and Consultant will consult in good faith regarding the root cause analysis and any remediation efforts.

[Use the following Section 9.3 if the vendor will have access to NCPA electronic systems, will provide software to NCPA, will provide equipment with the potential to impact electronic information such as SCADA, meters, sensors connected to control systems, control systems, communications, etc.]

9.3 Cyber Security. Consultant agrees to abide by Agency's CIP-013[2] policies, processes, and procedures as outlined below for completing the Work. In addition, Consultant takes all responsibility and liability to ensure all Work is free from malicious code. Malicious code means viruses, worms, timebombs, trojan horses and other malicious code, files, scripts, agents or programs. In addition, Consultant shall take all of the following actions.

9.3.1 Notification. Consultant shall notify Agency of Consultant-identified incidents related to the Work provided to Agency that pose cyber security risk to Agency.

[2]See North American Transmission Forum, NATF CIP 013 Implementation Guidance; Supply Chain Risk Management Plans (available at CIP-013 Supply Chain Risk Management Plans (NATF) 1.pdf)

Consultant is required to notify Agency of all identified, threatened, attempted, or successful breaches or vulnerabilities of Consultant's products, software, systems, components, or services. Consultant's notification will also provide Agency with all known mitigations, controls, patches, components Agency can implement to prevent and/or correct the identified breach, issue, or incident.

Consultant shall provide all notifications to:

Agency:
Email: Support@ncpa.com

With a copy to:

Legal:
Email: General.Counsel@ncpa.com

and

Contract Administrator
Email: _____

9.3.2 **Coordination.** Consultant shall coordinate responses to Consultant-identified incidents related to the Work provided to Agency that pose cyber security risk to Agency.

As stated in Section 9.3.1, Consultant is required to notify Agency of any breaches or vulnerabilities related to Consultant's products or services. In the event Consultant's products or services pose a cyber security risk to Agency or otherwise cause a cyber security incident for Agency, Consultant is required to collaborate with Agency to mitigate and correct the cyber security risk, breach or vulnerability.

Consultant shall provide Agency with:

- List of Consultant's specific products or services at risk
- Precautions, mitigations, or controls to minimize risks
- Action plan to correct the risk
- Status reports (if risk is ongoing)
- Final resolution of issue

- Each party shall bear the costs of remediation, mitigation, notice and/or relief to the extent the breach or security incident was caused by it or if such party is the recipient of the cyber security breach.

9.3.3 **Remote or Onsite Access.** Consultant shall notify Agency when remote or onsite access should no longer be granted to Consultant representatives.

Consultant will notify Agency within 24 hours:

- Consultant's employees, or Consultant's authorized subConsultants no longer require access.
- Consultant's employees, or Consultant's authorized subcontractors are no longer qualified to maintain access.
- Consultant's employees', or Consultant's authorized subcontractors' employment has ended or been terminated.

9.3.4. **Disclosure of Vulnerabilities.** Consultant shall promptly disclose known vulnerabilities related to the Work provided to Agency.

Consultant will provide Agency with summary documentation describing security breaches in Consultant's products or Consultant's supply chain impacting Agency's BES Cyber System. Consultant will also provide Agency with summary documentation describing any uncorrected security vulnerabilities.

Consultant's disclosure should be made to Agency within 48 hours of identifying the breach or vulnerability. The disclosure should include:

- Summary description of the breach or vulnerability
- Potential impact of the breach or vulnerability
- Root cause
- Corrective actions, compensating controls, mitigations, or other steps Agency should take as a result of the breach or vulnerability

9.3.5 **Integrity and Authenticity.** Consultant shall verify the integrity and authenticity of all software and patches provided by Consultant for use by Agency.

Consultant agrees to provide Agency with all software and firmware updates to remediate vulnerabilities or weaknesses. Upon execution of this Contract, Consultant will provide Agency with Consultant's patch management and update process and software delivery documentation. The documentation should include a description of how Agency will verify the authenticity of software and validate the integrity of all patches provided by Consultant.

Consultant will also provide Agency with Consultant's schedule for releasing software and patch updates. Consultant will provide Agency with instructions for applying, validating, and testing the updates and patches.

9.3.6 **Access Controls.** Consultant shall coordinate controls with Agency for (a) Consultant-initiated interactive remote access, and (b) system to system remote access.

If Consultant uses remote access, Consultant will provide Agency with the IP addresses, ports, and minimum privileges required to perform remote access services. Consultant agrees to use individual user accounts to limit access and permissions. Consultant also agrees to maintain Consultant's IT assets connecting to Agency's network with current updates to remediate vulnerabilities or weaknesses. Consultant and Consultant's employees agree to not disclose or share account credentials, passwords, or established connections.

Section 10. MISCELLANEOUS PROVISIONS.

10.1 **Attorneys' Fees.** If a party to this Agreement brings any action, including an action for declaratory relief, to enforce or interpret the provision of this Agreement, the prevailing party shall be entitled to reasonable attorneys' fees in addition to any other relief to which that party may be entitled. The court may set such fees in the same action or in a separate action brought for that purpose.

10.2 **Venue.** In the event that either party brings any action against the other under this Agreement, the Parties agree that trial of such action shall be vested exclusively in the state courts of California in the County of Placer or in the United States District Court for the Eastern District of California.

10.3 **Severability.** If a court of competent jurisdiction finds or rules that any provision of this Agreement is invalid, void, or unenforceable, the provisions of this Agreement not so adjudged shall remain in full force and effect. The invalidity in whole or in part of any provision of this Agreement shall not void or affect the validity of any other provision of this Agreement.

10.4 **No Implied Waiver of Breach.** The waiver of any breach of a specific provision of this Agreement does not constitute a waiver of any other breach of that term or any other term of this Agreement.

10.5 **Successors and Assigns.** The provisions of this Agreement shall inure to the benefit of and shall apply to and bind the successors and assigns of the Parties.

10.6 **Conflict of Interest.** Consultant may serve other clients, but none whose activities within the corporate limits of Agency or whose business, regardless of location, would place Consultant in a "conflict of interest," as that term is defined in the Political Reform Act, codified at California Government Code Section 81000 *et seq.*

Consultant shall not employ any Agency official in the work performed pursuant to this Agreement. No officer or employee of Agency shall have any financial interest in this Agreement that would violate California Government Code Sections 1090 *et seq.*

Consultant represents that it has advised Agency in writing prior to the date of signing this Agreement of any known relationships with third parties, Agency members, or employees of Agency which would (1) present a conflict of interest with the rendering of services under this Agreement under Government Code Section 1090 *et seq*., the Political Reform Act (Government Code Section 81000 *et seq.)*, or other applicable law, (2) prevent Consultant from performing the terms of this Agreement, or (3) present a significant opportunity for the disclosure of confidential information.

10.7 **Contract Administrator.** This Agreement shall be administered by _____, Assistant General Manager, or his/her designee, ("Contract Administrator") who shall act as the Agency's representative. All correspondence shall be directed to or through the representative. Agency reserves the right to change this designation upon written notice to Consultant.

10.8 **Notices.** Any written notice to Consultant shall be sent to:

[CONSULTANT'S NAME, ADDRESS]

Any written notice to Agency shall be sent to:

Randy S. Howard
General Manager
Northern California Power Agency
651 Commerce Drive
Roseville, CA 95678

With a copy to:

Jane E. Luckhardt
General Counsel

Northern California Power Agency
651 Commerce Drive
Roseville, CA 95678

10.9 **Professional Seal.** Where applicable in the determination of the Agency, the first page of a technical report, first page of design specifications, and each page of construction drawings shall be stamped/sealed and signed by the licensed professional responsible for the report/design preparation.

10.10 **Integration; Incorporation.** This Agreement, including all the exhibits attached hereto, represents the entire and integrated agreement between Agency and Consultant and supersedes all prior negotiations, representations, or agreements, either written or oral. All exhibits attached hereto are incorporated by reference herein.

10.11 **Alternative Dispute Resolution.** If any dispute arises between the Parties that cannot be settled after engaging in good faith negotiations, Agency and Consultant agree to resolve the dispute in accordance with the following:

10.11.1 Each party shall designate a senior management or executive level representative to negotiate any dispute;

10.11.2 The representatives shall attempt, through good faith negotiations, to resolve the dispute by any means within their authority.

10.11.3 If the issue remains unresolved after fifteen (15) days of good faith negotiations, the Parties shall attempt to resolve the disagreement by negotiation between legal counsel. If the above process fails, the Parties shall resolve any remaining disputes through mediation to expedite the resolution of the dispute.

10.11.4 The mediation process shall provide for the selection within fifteen (15) days by both Parties of a disinterested third person as mediator, shall be commenced within thirty (30) days and shall be concluded within fifteen (15) days from the commencement of the mediation.

10.11.5 The Parties shall equally bear the costs of any third party in any alternative dispute resolution process.

10.11.6 The alternative dispute resolution process is a material condition to this Agreement and must be exhausted as an administrative prior to either Party initiating legal action. This alternative dispute resolution process is not intended to nor shall be construed to change the time periods for filing a claim or action specified by Government Code §§ 900 *et seq*.

10.12 **Controlling Provisions.** In the case of any conflict between the terms of this Agreement and the Exhibits hereto, a Purchase Order, or Consultant's Proposal (if any), the Agreement shall control. In the case of any conflict between the Exhibits hereto and a Purchase Order or the Consultant's Proposal, the Exhibits shall control. In the case of any conflict between the terms of a Purchase Order and the Consultant's Proposal, the Purchase Order shall control.

10.13 **Counterparts.** This Agreement may be executed in multiple counterparts, each of which shall be an original and all of which together shall constitute one agreement.

10.14 **Construction of Agreement.** Each party hereto has had an equivalent opportunity to participate in the drafting of the Agreement and/or to consult with legal counsel. Therefore, the usual construction of an agreement against the drafting party shall not apply hereto.

10.15 **No Third-Party Beneficiaries.** This Agreement is made solely for the benefit of the parties hereto, with no intent to benefit any non-signator third parties. However, should Consultant provide Services to an Agency member, SCCPA and/or a SCPPA member (collectively for the purposes of this section only "Member") pursuant to section 1.4, the parties recognize that such Member may be a third-party beneficiary solely as to the Purchase Order and Requested Services relating to such Member.

10.16 Identity Information Protection.

10.16.1 During the term of the Agreement the Consultant shall not collect, process or store any Private Information (PI) and Personally Identifiable Information (PII), except the name and address of an individual.

10.16.2 Personal information (PI) is defined as an individual's first name or first initial and last name in combination with any one or more of the following data elements, when either the name or the data elements are not encrypted:

(1) Social security number; (2) Driver's license number or California Identification Card number; (3) Account number, credit or debit card number, in combination with any required security code, access code, or password that would permit access to an individual's financial account,

"Personal information" does not include publicly available information that is lawfully made available to the general public from federal, state, or local government records.

Personally Identifiable Information (PII), as used in information security, is information that can be used to uniquely identify, contact,

or locate a single person or can be used with other sources to uniquely identify a single individual.

[For use after NCPA develops an electronic signature policy.]

10.17 Electronic Signatures. The Parties acknowledge and agree that this Agreement may be executed by electronic signature, which shall be considered as an original signature for all purposes and shall have the same force and effect as an original signature. Without limitation, "electronic signature" shall include faxed or emailed versions of an original signature, electronically scanned and transmitted versions (e.g., via pdf) of an original signature, or a digital signature.

The Parties have executed this Agreement as of the date signed by the Agency.

NORTHERN CALIFORNIA POWER AGENCY	CONSULTANT
Date_____	Date_____
_____	_____
[NAME, TITLE]	**[NAME, TITLE]**

Attest:

_____
Assistant Secretary of the Commission

Approved as to Form:

_____
Jane E. Luckhardt, General Counsel

APPENDIX B
STANDARD MULTI-TASK CONSULTING SERVICES AGREEMENT

EXHIBIT A

SCOPE OF SERVICES

Consultant shall provide the following Services as requested by the Northern California Power Agency (Agency) at any facilities owned or operated by the Agency, NCPA Members, Southern California Public Power Authority (SCPPA) or SCPPA Members, as follows:

[ATTACH OR INSERT SCOPE OF SERVICES HERE]

APPENDIX B
STANDARD MULTI-TASK CONSULTING SERVICES AGREEMENT

EXHIBIT B

COMPENSATION SCHEDULE AND HOURLY FEES

Compensation for all tasks, including hourly fees and expenses, shall not exceed _____. The hourly rates and or compensation break down and an estimated amount of expenses is as follows:

[Insert breakdown here]

Pricing for services to be performed at NCPA Member or SCPPA locations will be quoted at the time services are requested.

NOTES:

- As a public agency, NCPA shall not reimburse Consultant for travel, food and related costs in excess of those permitted by the Internal Revenue Service. In addition, NCPA policies prohibit reimbursement for alcohol.
- NCPA does not pay for clerical, accounting, managerial, or other types of related overhead expenses.

APPENDIX B
STANDARD MULTI-TASK CONSULTING SERVICES AGREEMENT

EXHIBIT C

CRIMINAL HISTORY ACCEPTANCE CRITERIA

CIP PERSONNEL RISK ASSESSMENT (PRA) EVALUATION CHECKLIST

Vendors Name: _____
Applicant's Name: _____
Investigator's Name: _____
Date: _____ Badge Number: _____

☐ Consultant or Vendor ☐ Self-Reported Arrest

RISK ASSESSMENT DETAILS (Check Yes or No for each criteria)

YES	NO	
☐	☐	Identity verification completed and approved. Method Used: _____
☐	☐	Name and social security number correspond.
☐	☐	Pre-employment Background Investigation for previous 7 years completed and approved by the Vendor. No criminal history, or disposition of not guilty, not prosecuted, waived or dismissed.
☐	☐	Is the Vendor able to verify the nature or status of criminal history. If no, comment below.
☐	☐	Unresolved or outstanding warrant.
☐	☐	*Potentially Disqualifying Misdemeanor* – Misdemeanor conviction or misdemeanor pending court adjudication or disposition for crime INVOLVING weapons, drugs, violence, theft, robbery, burglary, embezzlement, misappropriation, fraud, terrorist threats, or sabotage or sexual offenses, where the conviction date and any related term of imprisonment ended less than 7 years prior to background investigation application (describe in comments).
☐	☐	Felony conviction at any time or felony charge pending court adjudication or disposition.

EXHIBIT C *(Continued)*

CRIMINAL HISTORY ACCEPTANCE CRITERIA

Comments/Notes (attach additional pages as needed):
_____
_____
_____

NCPA INTERNAL REVIEW

Review Date: _____ Approver's Name: _____

☐ APPROVED FOR CIP UNESCORTED ACCESS ☐ NOT APPROVED FOR CIP

☐ UNESCORTED ACCESS
APPROVED FOR CIP ELECTRONIC ACCESS ☐ NOT APPROVED FOR CIP
ELECTRONIC ACCESS

APPENDIX B
STANDARD MULTI-TASK CONSULTING SERVICES AGREEMENT

EXHIBIT D

CERTIFICATION

Affidavit of Compliance for Contractors

I, _____
(Name of person signing affidavit) (Title)

do hereby certify that background investigations to ascertain the accuracy of the identity and employment history of all employees of

_____
(Company name)

for contract work at:

LODI ENERGY CENTER, 12745 N. THORNTON ROAD, LODI, CA 95242

(Project name and location)

have been conducted as required by the California Energy Commission Decision for the above-named project.

_____
(Signature of officer or agent)

Dated this _____ day of _____, 20 _____.

THIS AFFIDAVIT OF COMPLIANCE SHALL BE APPENDED TO THE PROJECT SECURITY PLAN AND SHALL BE RETAINED AT ALL TIMES AT THE PROJECT SITE FOR REVIEW BY THE CALIFORNIA ENERGY COMMISSION COMPLIANCE PROJECT MANAGER.

APPENDIX C
MEMORANDUMS OF UNDERSTANDING AND AGENCY POLICIES AND PROCEDURES

Proposers can access the Agency's MOUs and Personnel Policies and Procedures at the links in numbers 1 and 2 below and according to the instructions in number 3 below:

1. Link to MEMORANDUM OF UNDERSTANDING between THE NORTHERN CALIFORNIA POWER AGENCY and LOCAL 1245 OF THE INTERNATIONAL BROTHERHOOD OF ELECTRICAL WORKERS: IBEW MOU

2. Link to MEMORANDUM OF UNDERSTANDING Between THE NORTHERN CALIFORNIA POWER AGENCY And THE HYDROELECTRIC EMPLOYEES ASSOCIATION: HEA MOU

3. Link to NCPA's Personnel Policies and Procedures. This document contains pay rules for unrepresented employees: Time \u0026 Attendance Docs

APPENDIX D
PAY RULES FOR MEMORANDUMS OF UNDERSTANDING*

TIMESHEET RULE ENGINE MATRIX - HYDROELECTRIC EMPLOYEES ASSOCIATION AGREEMENT

TEMPORARY UPGRADES & LEAD PAY

Rule ID	Description	Trigger/Condition	Calculation/Action	Dependencies
HEA-TU-001	Non-Supervisory to Supervisory	Non-supervisory assigned to supervisory classification	5% above Lead Worker rate, minimum 2 hours	Assignment type, hours worked
HEA-TU-002	Non-Supervisory to Higher Classification	Non-supervisory assigned to higher classification	Higher classification rate, minimum 2 hours	Assignment type, hours worked, classification rate
HEA-TU-003	Temporary Assignment >15 Days	Assignment exceeds 15 consecutive workdays	Requires Personnel Action by Manager, Hydro Facilities	Assignment duration, Personnel Action
HEA-TU-004	Lead Transportation	Non-supervisory temporarily assigned to supervisory	When feasible, Agency provides transportation to/from home	Assignment type, transportation availability
HEA-TU-005	Temporary Upgrade Holiday Pay	Temporarily upgraded (not time card basis)	Holiday pay based on upgraded rate	Upgrade status, holiday

TEMPORARY ASSIGNMENT PREMIUM

Rule ID	Description	Trigger/Condition	Calculation/Action	Dependencies
HEA-TA-001	Temporary Assignment 10% Premium	Temporarily assigned impractical to return home daily	10% increase in base wages for duration	Assignment location, distance from home
HEA-TA-002	Temporary Assignment Motel	Impractical to return home	Agency pays reasonable motel expense	Assignment location, lodging receipts
HEA-TA-003	Temporary Assignment Per Diem	Impractical to return home	CONUS per diem rate established by GSA	Assignment location, per diem rate
HEA-TA-004	Temporary Assignment Laundry	Impractical to return home	Actual costs up to $12/week with receipts/signed form	Assignment duration, receipts
HEA-TA-005	Temporary Assignment Non-Workday Expenses	Non-workdays at temporary location	Board and lodging paid by Agency	Non-workday, temporary location
HEA-TA-006	Temporary Assignment Transportation	If possible for temp assignment	Agency provides 1 vehicle per 2 employees	Assignment location, vehicle availability
HEA-TA-007	Temporary Assignment Travel Time	Travel to/from temporary location	Considered as time worked	Travel to/from assignment
HEA-TA-008	Temporary Assignment Motel Travel OT	Motel to work location >15 minutes each way	Excess time paid at OT rate	Travel time, 15-minute threshold
HEA-TA-009	Temporary Assignment Personal Vehicle	Authorized personal vehicle use for Agency duties	IRS mileage rate reimbursement per NCPA Travel Policy	Authorization, mileage, IRS rate
HEA-TA-010	Temporary Assignment Weekend Return	Assignment extends beyond 2nd consecutive week	May return home on weekend, expenses covered	Assignment duration >2 weeks
HEA-TA-011	Temporary Assignment >1 Week Schedule	Assignment >1 week	Assume same schedule as assigned work crew (9/80, 4/10, 5/8)	Assignment duration, crew schedule
HEA-TA-012	Temporary Assignment Minimum Pay	Assignment >1 week	Minimum 40 hours pay per week	Assignment duration

CONSECUTIVE WORK DAYS LIMIT

Rule ID	Description	Trigger/Condition	Calculation/Action	Dependencies
HEA-CW-001	21-Day Consecutive Limit	Employee worked 21 consecutive days	Entitled to 2 consecutive days off at straight-time	Consecutive workday count
HEA-CW-002	Emergency Exception	Hazard to life, property, or emergency situation	May work >21 consecutive days	Emergency flag
HEA-CW-003	Employee Waiver	Employee waives 21-day limit with management approval	May work >21 days, still receives 2 days off with straight pay	Waiver request, management approval
HEA-CW-004	Workday Definition for Limit	Day counting for 21-day limit	Work day = any day with at least 8 hours worked	Daily hours worked

WAGE PROGRESSION

Rule ID	Description	Trigger/Condition	Calculation/Action	Dependencies
HEA-WP-001	Annual Wage Increase 2025	First payroll period of 2025	4.75% base wage increase	Commission approval, payroll period
HEA-WP-002	Annual Wage Increase 2026	First payroll period of 2026	4.25% base wage increase	Commission approval, payroll period
HEA-WP-003	Annual Wage Increase 2027	First payroll period of 2027	4.0% base wage increase	Commission approval, payroll period
HEA-WP-004	Performance-Based Step Increase	Annual performance appraisal	No step increase if overall rating <"Meets Requirements"	Performance rating, step eligibility
HEA-WP-005	Follow-Up Appraisal	Rating <"Meets Requirements"	Follow-up appraisal within 90 days	Performance rating, appraisal schedule
HEA-WP-006	Leave Delay - Short Absence	Absence on leave or without pay >10 consecutive workdays	Delay wage progression by leave period	Leave duration, consecutive days
HEA-WP-007	Leave Delay - Training Classification	Beginning/training classification, industrial injury/illness/disability >25 days	Delay progression by days in excess of 25	Leave reason, duration, classification

APPENDIX D
PAY RULES FOR MEMORANDUMS OF UNDERSTANDING*

SPECIAL PAY CALCULATIONS

Rule ID	Description	Trigger/Condition	Calculation/Action	Dependencies
HEA-PC-001	OT Rate Base Calculation	OT hours worked	Base + shift premium + temp upgrade + cash-in-lieu medical	Hourly rate, premiums, cash-in-lieu
HEA-PC-002	Cash-in-Lieu in FLSA Rate	Employee receives cash-in-lieu medical	Include in FLSA regular rate for OT purposes	Cash-in-lieu amount, OT calculation
HEA-PC-003	Payment Timing	Bi-weekly payroll	Wages paid on Fridays	Payroll cycle
HEA-PC-004	Holiday Payment Timing	Regular payday falls on holiday	Payment made on preceding workday	Payday, holiday
HEA-PC-005	OT Withholding Default	OT payment	Based on employee W-4	W-4 on file
HEA-PC-006	OT Withholding Flat Rate	Employee requests flat-rate withholding	Apply flat rate per written request	Written request on file

TIMESHEET RULE ENGINE MATRIX - IBEW LOCAL 1245 AGREEMENT

WORK SCHEDULES & STANDARD HOURS

Rule ID	Description	Trigger/Condition	Calculation/Action	Dependencies
IBEW-WS-001	8-Hour Standard Schedule	Employee assigned to 8-hour schedule	40 hours per 7-day period (5 days × 8 hours)	Employee schedule type
IBEW-WS-002	12-Hour Shift Schedule	Employee assigned to 12-hour shift	240 hours per 6-week period (avg 40/week)	Employee schedule type, 6-week tracking
IBEW-WS-003	Alternative 12-Hour (Dupont)	CT/Geo Operations proposes, management approves, 75% vote	Alternative 12-hour shift pattern	Workgroup vote, management approval
IBEW-WS-004	Nine-Eighty Schedule	Employee assigned to 9/80 schedule	80 hrs/14 days (5×9hrs + 2 off + 3×9hrs + 1×8hrs + 3 off)	Employee schedule type, 14-day tracking
IBEW-WS-005	Four-Ten Schedule	Employee assigned to 4/10 schedule	80 hours per 14-day period	Employee schedule type, 14-day tracking
IBEW-WS-006	Relief Operator 12-Hour Schedule	Relief Operator at CT/GEO on alt 12-hour	20 days per 6-week period (includes holidays, vacation, paid absences, straight-time days)	Relief operator flag, 6-week tracking
IBEW-WS-007	FLSA Workweek Definition	All employees	Sunday 12:00 AM - Saturday 11:59 PM	Calendar tracking
IBEW-WS-008	Shift Workweek Start	Shift workers	Workweek begins at shift start on Sunday	Shift schedule, Sunday shift start
IBEW-WS-009	Paid Lunch Period	Non-shift employees	30 minutes paid, scheduled mid-workday	Schedule type, lunch timing
IBEW-WS-010	Shift Time Definitions	Maintenance work requiring coverage	Day: 0600-0900, Swing: 1500-1800, Night: 2300-0200	Shift assignment, start time
IBEW-WS-011	12-Hour Shift Times	Shift employees on 12-hour schedule	Day: 0600-1800, Night: 1800-0600	12-hour schedule assignment
IBEW-WS-012	Schedule Change Notice	Permanent schedule change (non-emergency)	Minimum 2 weeks written notice to Local 1245	Schedule change, notice period

LABOR BALANCING ACCOUNT (LBA)

Rule ID	Description	Trigger/Condition	Calculation/Action	Dependencies
IBEW-LBA-001	LBA Accrual	Shift employee works pre-scheduled hours >40/week	Credit excess hours to LBA	Weekly hours >40, pre-scheduled flag
IBEW-LBA-002	Minimum LBA Balance	Shift employee LBA tracking	Maintain minimum 36 hours (enough for pay period averaging)	LBA balance
IBEW-LBA-003	LBA Excess Payout	July and December	Payout LBA hours exceeding 36-hour minimum	LBA balance, payout months
IBEW-LBA-004	LBA Negative Balance Allowed	Shift employee LBA goes negative	Allow negative but must be positive by year-end	LBA balance, year-end date
IBEW-LBA-005	New Hire LBA Front-Load	New shift employee hired	Agency front-loads hours for pay period averaging	Hire date, shift schedule
IBEW-LBA-006	LBA Front-Load Reimbursement	Shift employee works OT after front-load	Reimburse Agency from subsequent OT worked	Front-load balance, OT hours
IBEW-LBA-007	Holiday Hours to LBA	Regularly scheduled hours worked on holiday	Count as hours worked for labor balancing only	Holiday worked, regular schedule
IBEW-LBA-008	LBA Hours >40 in Week	All pre-scheduled hours >40/week	Credit to LBA, hours >40 paid at 1.5×	Weekly hours, pre-scheduled flag

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OVERTIME CALCULATION - DAILY				
Rule ID	**Description**	**Trigger/Condition**	**Calculation/Action**	**Dependencies**
IBEW-OT-001	Non-Shift 8-Hour Daily OT (1.5×)	Non-shift employee works >8 hours/day	Hours >8.00 paid at 1.5× base rate	Daily hours, non-shift schedule
IBEW-OT-002	Non-Shift Daily OT (2×)	Non-shift employee works >12 consecutive hours	Hours >12.00 paid at 2× base rate	Consecutive hours, non-shift schedule
IBEW-OT-003	12-Hour Shift Daily OT (1.5×)	12-hour employee works >12 hours/day	Hours >12.00 paid at 1.5× base rate	Daily hours, 12-hour schedule
IBEW-OT-004	12-Hour Shift Daily OT (2×)	12-hour employee works >16 consecutive hours	Hours >16.00 paid at 2× base rate	Consecutive hours, 12-hour schedule
IBEW-OT-005	4/10 Daily OT (1.5×)	4/10 employee works >10 hours/day	Hours >10.00 paid at 1.5× base rate	Daily hours, 4/10 schedule
IBEW-OT-006	4/10 Daily OT (2×)	4/10 employee works >12 consecutive hours	Hours >12.00 paid at 2× base rate	Consecutive hours, 4/10 schedule
IBEW-OT-007	9/80 Long Day OT (1.5×)	9/80 employee works >9 hours on long day	Hours >9.00 paid at 1.5× (except holiday bank)	Daily hours, 9/80 long day
IBEW-OT-008	9/80 Short Day OT (1.5×)	9/80 employee works >8 hours on short day	Hours >8.00 paid at 1.5× (except holiday bank)	Daily hours, 9/80 short day
IBEW-OT-009	9/80 Daily OT (2×)	9/80 employee works >12 consecutive hours	Hours >12.00 paid at 2× base rate	Consecutive hours, 9/80 schedule
OVERTIME CALCULATION - WEEKLY/PERIOD				
Rule ID	**Description**	**Trigger/Condition**	**Calculation/Action**	**Dependencies**
IBEW-OT-010	Shift Employee Weekly OT (1.5×)	Shift employee works >40 hours/week	Hours >40.00 paid at 1.5× (exclude vacation/paid absences)	Weekly hours, shift schedule
IBEW-OT-011	Non-Shift Weekly OT (1.5×)	Non-shift employee works >40 hours/week	Hours >40.00 paid at 1.5×	Weekly hours, non-shift schedule
IBEW-OT-012	4/10 Weekly OT (1.5×)	4/10 employee works >40 hours/week	Hours >40.00 paid at 1.5×	Weekly hours, 4/10 schedule
IBEW-OT-013	No OT Pyramiding	Multiple OT conditions met	Apply highest applicable rate only	All OT rules
OVERTIME CALCULATION - CONSECUTIVE DAYS OFF				
Rule ID	**Description**	**Trigger/Condition**	**Calculation/Action**	**Dependencies**
IBEW-OT-014	Non-Shift 2nd Day Off (2×)	Non-shift works 2nd consecutive day off AND worked 1st day	Hours >8.00 on 2nd day paid at 2×	Consecutive days off, prior day work, non-shift
IBEW-OT-015	Non-Shift 4th Day Off (2×)	Non-shift works 4th of 4 days off AND worked 3rd day	Hours >8.00 on 4th day paid at 2×	Consecutive days off, 3rd day work, non-shift
IBEW-OT-016	Shift 2nd Day Off (2×)	Shift employee works 2nd consecutive day off AND worked 1st day	Hours >12.00 on 2nd day paid at 2×	Consecutive days off, prior day work, shift schedule
IBEW-OT-017	4/10 2nd Day Off (2×)	4/10 works 2nd consecutive day off AND worked 1st day (8hrs)	Hours >10.00 on 2nd day paid at 2×	Consecutive days off, 1st day 8hrs worked, 4/10
IBEW-OT-018	4/10 3rd Day Off (2×)	4/10 works 3rd of 3 days off AND worked 2nd day	Hours >10.00 on 3rd day paid at 2×	Consecutive days off, 2nd day work, 4/10
IBEW-OT-019	4/10 4th Day Off (2×)	4/10 works 4th of 4 days off AND worked 3rd day	Hours >10.00 on 4th day paid at 2×	Consecutive days off, 3rd day work, 4/10
IBEW-OT-020	9/80 2nd Day Off (2×)	9/80 works 2nd consecutive day off AND worked 1st day	Hours >8.00 on 2nd day paid at 2×	Consecutive days off, prior day work, 9/80
IBEW-OT-021	9/80 3rd Day Off (2×)	9/80 works 3rd of 3 days off AND worked 2nd day	Hours >8.00 on 3rd day paid at 2×	Consecutive days off, 2nd day work, 9/80

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CALL-OUT & EMERGENCY WORK				
Rule ID	**Description**	**Trigger/Condition**	**Calculation/Action**	**Dependencies**
IBEW-CO-001	Call-Out Minimum (2×)	Employee called out and reports to jobsite	Minimum 2 hours at 2× base rate + actual hours	Call-out flag, jobsite reporting
IBEW-CO-002	Call-Out Travel Time (2×)	Employee called out	Travel time at 2×, max 1.5 hours each way	Call-out flag, travel time
IBEW-CO-003	Phone/Text Consultation	Phone/text response (no physical report)	First 30 mins = 30 mins OT; thereafter 15-min increments per call	Phone/text flag, call duration, 30-min threshold
IBEW-CO-004	Scheduled OT Cancellation	Scheduled OT on non-workday/holiday cancelled	2 hours at 1.5× if not notified by end of preceding work period	Cancellation flag, notification timing
IBEW-CO-005	Work Through Rest Period (2×)	Employee works through entitled rest period	2× until relieved for 8 consecutive hours	Rest period eligibility, consecutive hours
SHIFT PREMIUMS				
Rule ID	**Description**	**Trigger/Condition**	**Calculation/Action**	**Dependencies**
IBEW-SP-001	Operator Shift Premium Elimination	Operators as of 2019	2.5% base wage increase replaces shift premium	Operator classification, effective date
IBEW-SP-002	Non-Operator Swing Shift	Non-operator shift starts 1500-1800	$1.25/hour for hours actually worked	Non-operator flag, shift start time, work hours
IBEW-SP-003	Non-Operator Night Shift	Non-operator shift starts 2300-0200	$2.50/hour for hours actually worked	Non-operator flag, shift start time, work hours
IBEW-SP-004	Relief Operator Premium	Relief Operators as of 12/29/2024	6.0% base wage increase (replaces weekly premium)	Relief operator flag, effective date
IBEW-SP-005	Premium on OT	Shift premium applies during OT	Apply OT rate to shift premium amount	Shift premium, OT hours
IBEW-SP-006	Premium Exclusions	Holiday, sick, vacation, CTO	No shift premium paid	Leave type, non-work hours
IBEW-SP-007	Non-Shift Placed on Shift	Non-shift on regular shift minimum 2-week pay period	Applicable shift premium paid	Schedule change, minimum 2 weeks
IBEW-SP-008	Premium Before/After Shift	Work immediately before/after regular shift	Apply regular shift premium to adjacent hours	Shift timing, work timing
TRAVEL TIME & MILEAGE				
Rule ID	**Description**	**Trigger/Condition**	**Calculation/Action**	**Dependencies**
IBEW-TR-001	Inter-Site Travel	Travel between assigned plant sites	Time counted as hours worked	Travel entry, plant sites
IBEW-TR-002	Pre-Arranged OT Travel (1.5×)	Pre-arranged work on non-workday/outside regular hours	Travel + work at 1.5×, max 1.5 hrs each way	Pre-arranged flag, travel time, work hours
IBEW-TR-003	Pre-Arranged Continuing into Regular	Pre-arranged work continues into regular hours	1.5× for one-way travel + work until regular hours	Pre-arranged flag, continuation, regular hours
IBEW-TR-004	Call-Out Travel (2×)	Called out outside regular hours	Travel at 2×, max 1.5 hrs each way	Call-out flag, travel time
IBEW-TR-005	Weather/Road Delay Travel	Excess travel beyond control due to weather/roads	Pay excess with supervisor approval	Travel delay flag, supervisor approval
IBEW-TR-006	Geothermal Transportation Allowance	Geothermal employee commuting from Lake/Sonoma Counties	$17/day	Geothermal location, county of residence
IBEW-TR-007	OT Extension No Additional Allowance	Extension of normal workday	No additional transportation allowance	Workday extension, allowance already paid
IBEW-TR-008	Relief Operator Travel Pay	Relief operator works beyond required 240 hrs/6-week period	Travel time to/from work for excess days	Relief operator, hours >240 in 6 weeks
IBEW-TR-009	Personal Vehicle Mileage	Supervisor-approved personal vehicle use for Agency business	IRS rate reimbursement per NCPA Travel Policy	Approval, mileage, IRS rate
IBEW-TR-010	Temporary Assignment Excess Travel	Temp location excess over normal commute	Excess time counted as hours worked	Temp assignment, normal commute, actual travel
IBEW-TR-011	Transportation Allowance vs Mileage	Temp assignment mileage reimbursement	Cannot receive both transportation allowance and mileage	Transportation allowance status, mileage claim

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MEALS & BREAK RULES				
Rule ID	**Description**	**Trigger/Condition**	**Calculation/Action**	**Dependencies**
IBEW-ML-001	Work 2-4 Hours Before Shift	Report 2-4 hours before regular, continue into regular	1 meal ($20 or provided), no paid period	Hours before shift, continuation
IBEW-ML-002	Work 1:15+ Beyond Shift	Work 1 hr 15 min+ beyond regular hours	$20 + 30 min pay, then every 4 hours	Hours beyond shift (round to 15 min)
IBEW-ML-003	Supplemental Meal	Work continues 2.5 hours beyond shift end	Supplemental meal provided, then every 4 hours after prior meal	Hours beyond shift, meal intervals
IBEW-ML-004	Supplemental Meal Unavailable	Supplemental meal cannot be provided beyond control	$10 in addition to any missed meal allowances	Supplemental meal flag, unavailability
IBEW-ML-005	Supplemental Meal Participation	Other employees working when supplemental provided	All working employees may participate	Supplemental meal provision, employees present
IBEW-ML-006	Emergency Work Meals	Emergency work on non-workday/outside regular hours	$20 + 30 min every 4 hours OR meal provided	Emergency flag, 4-hour intervals
IBEW-ML-007	Pre-Arranged Non-Workday During Regular	Pre-arranged work on non-workday during regular hours	Observe normal lunch arrangement	Pre-arranged, non-workday, regular hours
IBEW-ML-008	Pre-Arranged Beyond Regular Hours	Pre-arranged continues beyond regular hours	$20 + 30 min every 4 hours after regular	Pre-arranged, hours beyond regular
IBEW-ML-009	Pre-Arranged Wholly Outside Regular	Pre-arranged wholly outside regular hours	30 min paid meal at 4-5 hrs, then $20 + 30 min every 4 hrs	Pre-arranged, outside regular, intervals
IBEW-ML-010	Travel Time Exclusion	Meal interval calculation	Exclude travel time from interval determination	Travel time, meal intervals
IBEW-ML-011	Meal Not a Substitute	Supplemental meal vs. release from control	Supplemental for sustenance while working, not substitute for released meal	Supplemental meal, employee release status
IBEW-ML-012	Regular Hours on Non-Workday	Pre-arranged non-workday meal timing	Use last pre-scheduled work hours as "regular hours"	Pre-arranged, non-workday, prior schedule
IBEW-ML-013	Temporary Assignment Per Diem (Full Day)	Off-site training/meeting/temp assignment full day	CONUS per diem rate	Temp assignment, full day off-site
IBEW-ML-014	Temporary Assignment Per Diem (Partial)	Partial day travel for 8+ hour training/meeting/assignment	½ per diem ≤2 hrs; ⅔ ≤5.5 hrs; full >5.5 hrs	Travel duration, assignment duration ≥8 hrs
IBEW-ML-015	Per Diem Exclusion	Meals included in training/meeting	Pro-rated per diem does not apply	Meals provided flag
REST PERIOD RULES				
Rule ID	**Description**	**Trigger/Condition**	**Calculation/Action**	**Dependencies**
IBEW-RP-001	Shift Rest Period Eligibility	Shift worked 4+ OT hours in 12-hour period before shift	Entitled to 8 consecutive hours rest + up to 2 hrs travel	OT hours in lookback, shift schedule
IBEW-RP-002	Non-Shift Rest Period Eligibility	Non-shift worked 8+ OT hours in 16-hour period before shift	Entitled to 8 consecutive hours rest + up to 2 hrs travel	OT hours in lookback, non-shift schedule
IBEW-RP-003	4/10 Rest Period Eligibility	4/10 worked 6+ OT hours in 14-hour period before shift	Entitled to	

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AUDIT & COMPLIANCE TRACKING

Rule ID	Description	Trigger/Condition	Calculation/Action	Dependencies
AUD-001	OT Rate Justification Log	All OT hours	Log why 1.5× vs. 2× rate applied with rule reference	OT entry, rate applied, rule ID
AUD-002	Supervisor Approval Tracking	Exceptions requiring approval	Log approval date, time, supervisor name	Exception type, approval
AUD-003	Weather/Road Delay Approvals	Travel time exceptions	Log supervisor approval for excess travel time	Travel delay flag, approval
AUD-004	Rest Period Eligibility Log	Rest period calculations	Log lookback hours, OT hours counted, eligibility determination	Rest calculation, hours, decision
AUD-005	Schedule Change Documentation	All schedule changes	Log prior schedule, new schedule, change date, notification date	Schedule change event
AUD-006	Call-Out Notification Time	All call-outs	Log time employee notified vs. preceding work period end	Call-out time, work period end
AUD-007	Meal Period Provision Log	All meal eligibility events	Log meal provided, cash paid, or missed with 30-min pay	Meal event, provision method
AUD-008	Supplemental Meal Log (IBEW)	Supplemental meal events	Log provision or $10 payment if unavailable	Supplemental meal event, provision status
AUD-009	Shift Premium Application	All shift work	Log shift premium type, hours applied, rate	Shift hours, premium type
AUD-010	Temporary Upgrade Log	All temporary upgrades	Log start date, end date, rate differential, >15 day flag	Upgrade assignment
AUD-011	Holiday Bank Usage	9/80, 4/10, 12-hour holidays	Log hours from bank vs. vacation/CTO/unpaid election	Holiday date, hours source, balance
AUD-012	CTO Election Tracking	Annual elections	Log election date, election for next year	Election form, effective year
AUD-013	Vacation Sell-Back Log	November sell-back opportunity	Log amount sold, date, balance after	Sell-back transaction
AUD-014	LBA Negative Balance Alert (IBEW)	LBA goes negative	Alert if negative approaching year-end	LBA balance, date, year-end proximity
AUD-015	21-Day Consecutive Work Alert	20 consecutive workdays	Alert at 20 days, require 2 days off or emergency flag by day 22	Consecutive day count
AUD-016	CTO Cap Reached Alert	CTO approaching 147 hours	Alert employee and payroll when within 10 hours of cap	CTO balance, cap threshold
AUD-017	Vacation Accrual Stop Alert	Vacation at 2.5× annual rate	Alert employee and supervisor when accrual stopped	Vacation balance, max threshold
AUD-018	Step Progression Eligibility	Annual performance appraisal	Flag employees eligible for step increase based on rating and training	Performance rating, training completion
AUD-019	Leave Balance Negative Alert	Sick leave used beyond accrual (new employees)	Track negative balance for future recovery	Sick balance, new employee status
AUD-020	Training Program Eligibility (IBEW)	Geo Operator Training roster	Track sign-up order, seniority, prior year completion	Sign-up date, seniority, training history

EXCEPTION & OVERRIDE HANDLING

Rule ID	Description	Trigger/Condition	Calculation/Action	Dependencies
EXC-001	Manual OT Rate Override	Supervisor/payroll manually changes OT rate	Allow override with justification note, log original calculation	OT entry, override flag, justification
EXC-002	Travel Time Cap Override	Travel time exceeds normal caps	Allow with supervisor approval for weather/road conditions	Travel time, cap exceeded, approval
EXC-003	Rest Period Override	Safety/operational needs override rest period	Management may require work during rest period at 2× rate	Rest period, override flag, 2× rate
EXC-004	Schedule Change Extension	Schedule change >4 weeks (HEA) or >6 weeks (IBEW)	Flag for rotation consideration, allow continuation with approval	Duration, approval
EXC-005	Emergency 21-Day Override	Hazard to life/property/emergency	Allow work beyond 21 consecutive days with emergency flag	Emergency flag, consecutive days
EXC-006	Holiday Bank Insufficient	Employee out of 12-hour bank for holiday	Allow vacation/CTO/unpaid election	Bank balance, employee election
EXC-007	CTO Usage Without 2-Week Notice	Operational emergency requires immediate absence	Allow with supervisor discretion	CTO request, emergency flag, approval
EXC-008	Shift Vacation <7 Days (IBEW)	Shift employee needs vacation with short notice	Allowed if employee finds coverage	Shift schedule, coverage found, <7 days
EXC-009	New Hire CTO Election Late	New hire misses 2-week window	Allow late election with HR approval	Hire date, late election, HR approval
EXC-010	Negative LBA Year-End (IBEW)	Shift employee has negative LBA at year-end	Work with employee case-by-case for resolution	Year-end, negative LBA balance
EXC-011	Sick Leave for Family Exceed Cap	Employee exceeds 48-hour/5-day family sick cap	Flag for review, may require unpaid leave	Family sick usage, annual cap
EXC-012	Temporary Upgrade <2 Hours	Upgrade assignment <2 hours (minimum)	Do not pay upgrade differential	Upgrade hours, minimum threshold
EXC-013	Training Program Early Withdrawal (IBEW)	Employee withdraws from training before 6 months	Apply 2-year re-enrollment restriction	Withdrawal date, restriction flag
EXC-014	Non-Consecutive Vacation Period	Employee requests vacation in <1 week increments	Allow if operational needs permit	Vacation request, duration, approval
EXC-015	Floating Holiday Same-Day Request	Employee requests floating holiday without required notice	Deny or allow with supervisor discretion	Request timing, operational needs, approval

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PAYROLL INTEGRATION REQUIREMENTS				
Rule ID	**Description**	**Trigger/Condition**	**Calculation/Action**	**Dependencies**
PAY-001	Regular Pay Period Hours	Bi-weekly payroll	Calculate regular hours by schedule type	Schedule, hours worked
PAY-002	OT Pay Calculation (1.5×)	OT hours at 1.5× rate	Base rate + all premiums, multiply by 1.5, multiply by hours	Base rate, premiums, OT hours
PAY-003	OT Pay Calculation (2×)	OT hours at 2× rate	Base rate + all premiums, multiply by 2, multiply by hours	Base rate, premiums, OT hours
PAY-004	Shift Premium Pay	Shift premium hours	Premium rate × hours actually worked	Premium rate, hours worked
PAY-005	Temporary Upgrade Pay	Hours worked in upgraded classification	Upgraded rate × hours worked OR differential × hours	Upgrade rate, hours, calculation method
PAY-006	Temporary Assignment Premium	Temporary assignment duration	10% × base wage for all hours during assignment	Base wage, assignment dates
PAY-007	Standby Pay (HEA)	Standby duty period	2 hrs × weekdays, 3 hrs × weekend, 8 hrs × holiday at straight-time	Day type, standby dates
PAY-008	Call-Out Minimum Pay	Call-out event	Minimum 2 hours × applicable rate (1.5× or 2×)	Call-out flag, rate
PAY-009	Phone Consultation Pay (HEA)	Phone consultation event	1 or 2 hours × OT rate based on time of call	Call time, OT rate
PAY-010	Phone/Text Consultation Pay (IBEW)	Phone/text response	30 min or 15-min increments × OT rate	Response duration, OT rate
PAY-011	Rest Period Pay	Rest period during regular hours	Straight-time for overlap hours	Rest period, regular hours overlap
PAY-012	Meal Period Pay	Meal eligibility without break taken	30 minutes × applicable rate	Meal missed flag, rate
PAY-013	Travel Time Pay	Travel time entries	Travel hours × applicable rate (straight, 1.5×, or 2×)	Travel hours, rate type
PAY-014	Holiday Pay	Recognized holiday eligible	8 hours × straight-time rate	Holiday, eligibility
PAY-015	Worked Holiday Pay	Work on holiday	Holiday pay + (hours worked × OT rate)	Holiday, hours worked, OT rate
PAY-016	Holiday Bank Deduction	Holiday on 9/80, 4/10, 12-hour schedule	Deduct 1, 2, or 4 hours from bank or other source	Schedule type, bank balance, employee election
PAY-017	CTO Accrual	OT hours with CTO election	Convert OT hours to regular hours (OT hrs × rate multiplier)	OT hours, OT rate, CTO election
PAY-018	CTO Payout	CTO cash-out or year-end payout	CTO hours × current base rate	CTO balance, base rate
PAY-019	LBA Accrual (IBEW)	Pre-scheduled hours >40/week	Credit excess hours to LBA	Weekly hours >40, pre-scheduled flag
PAY-020	LBA Payout (IBEW)	July/December payout	(LBA balance - 36 hours) × current base rate if positive	LBA balance, payout month, base rate
PAY-021	Sick Leave Usage	Sick leave taken	Deduct hours from balance at straight-time	Sick hours, balance
PAY-022	Vacation Usage	Vacation taken	Deduct hours from balance at straight-time	Vacation hours, balance
PAY-023	Floating Holiday Usage	Floating holiday taken	Deduct 8 hours from balance at straight-time	Floating holiday taken, balance
PAY-024	Personal Day Usage	Personal day taken	Deduct hours from balance at straight-time	Personal hours, balance
PAY-025	Cash-in-Lieu Medical	Employee opts out of medical with alternate coverage	Fixed monthly amount, include in FLSA regular rate	Opt-out election, monthly amount
PAY-026	Tax Withholding on OT	OT payment	W-4 withholding or flat-rate per employee election	W-4, flat-rate election
PAY-027	Bi-Weekly Pay Timing	Payroll processing	Pay on Friday, or preceding workday if Friday is holiday	Payday, holiday calendar
PAY-028	Union Dues Deduction	Monthly (HEA) or per pay period (IBEW)	Deduct after all required deductions	Union dues amount, deduction priority
PAY-029	Geothermal Transportation Allowance (IBEW)	Geothermal employee workday	$17/day for qualifying employees	Geothermal location, workday
PAY-030	Temporary Assignment Reimbursements	Expense submissions	Per diem, mileage, laundry, phone per limits	Expense type, receipts, limits

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REPORTING REQUIREMENTS				
Rule ID	**Description**	**Trigger/Condition**	**Calculation/Action**	**Dependencies**
RPT-001	Daily Hours Report	Per employee per day	Regular, OT 1.5×, OT 2×, shift premium, travel, meal hours	All time entries
RPT-002	Weekly Hours Summary	Per employee per week	Total regular, total OT, weekly threshold tracking	Weekly aggregation
RPT-003	Pay Period Summary	Per employee per pay period	All pay components, LBA activity, CTO activity	Pay period aggregation
RPT-004	6-Week Period Report (12-hour)	Per 12-hour employee per 6-week period	240-hour tracking, hours over threshold	6-week aggregation
RPT-005	LBA Balance Report (IBEW)	Per shift employee	Current balance, minimum requirement, excess for payout	LBA balance, minimum
RPT-006	CTO Balance Report	Per employee with CTO election	Current balance, cap, available for payout	CTO balance, cap
RPT-007	Leave Balance Report	Per employee	Sick, vacation, floating holiday, personal day balances	All leave balances
RPT-008	Holiday Bank Report	Per 9/80, 4/10, 12-hour employee	Current bank balance, usage history	Holiday bank balance
RPT-009	Consecutive Days Worked Report	Per employee	Current consecutive workdays, alert at 20	Consecutive day count
RPT-010	Vacation Accrual Cap Report	Per employee	Current balance, annual rate, distance from 2.5× cap	Vacation balance, accrual rate
RPT-011	Schedule Change Duration Report	Per active schedule change	Change start date, duration, rotation due date	Schedule change tracking
RPT-012	Temporary Upgrade Report	Per active upgrade	Upgrade start, duration, >15 day flag, rate differential	Upgrade tracking
RPT-013	Temporary Assignment Report	Per active assignment	Assignment start, duration, 10% premium, expenses	Assignment tracking
RPT-014	Step Progression Eligibility Report	Per employee approaching anniversary	Next step date, performance rating requirement, training status	Step tracking, rating, training
RPT-015	Year-End CTO/Floating/Personal Report	November/December	Employees with unused balances subject to conversion/payout	Balance, year-end proximity
RPT-016	Standby Duty Report (HEA)	Per standby assignment	Dates, hours paid, call-ins during period	Standby tracking
RPT-017	Training Program Status (IBEW)	Active training participants	Training dates, LBA balance, schedule	Training enrollment, LBA
RPT-018	Exception/Override Report	All overrides	Override type, approver, justification, date	Override log
RPT-019	Audit Trail Report	Any time entry or calculation	Complete history of entry, calculations, changes	All audit logs
RPT-020	Compliance Dashboard	Real-time monitoring	Alerts for: 21-day limit, CTO cap, vacation cap, LBA negative, rest period violations	All tracking systems

*** The pay rules listed herein are examples only and do not constitute a complete or exhaustive representation of all MOU pay rules. Additional rules and conditions may apply.**